

**REGULAR MEETING AGENDA
ORANGE COUNTY HOUSING FINANCE TRUST
(OCHFT)**

WEDNESDAY, MARCH 18, 2026 - 10:00 A.M.

**COUNTY ADMINISTRATION NORTH – MULTI-PURPOSE ROOM – 1ST FLOOR
400 W. CIVIC CENTER DRIVE
SANTA ANA, CA 92701**

KATRINA FOLEY
Chair

MELINDA LIU
Vice Chair

VICENTE SARMIENTO
Director

GRACEY VAN DER MARK
Director

SHARI FREIDENRICH
Director

NORMA CAMPOS KURTZ
Director

ANDREW HAMILTON
Director

MIKE FROST
Director

JESSIE LOPEZ
Director

Trust Manager
Louis McClure

Trust Counsel
Ray Diaz

Clerk of the Trust
Valerie Sanchez

In compliance with the Americans with Disabilities Act and County Language Access Policy, those requiring accommodation or services of an interpreter for this meeting should notify the Clerk of the Board's Office 72 hours prior to the meeting at (714) 834-2206. Requests received less than 72 hours in advance will still receive every effort to reasonably fulfill within the time provided.

This agenda contains a brief general description of each item to be considered. Except as otherwise provided by law, no action shall be taken on any item not appearing on the agenda. The OCHFT Board encourages public participation. Members of the public may address the Trust regarding any item in the following ways:

1. **In-person:** If you wish to speak on a specific agenda item or during public comment, please complete a Speaker Request Form and deposit it in the Speaker Form Return box located next to the Clerk. Speaker Forms are located on the table next to the entrance doors. When addressing the OCHFT Board, please state your name (or pseudonym) for the record prior to providing your comments.
2. **Written Comment** – The Trust also accepts public comments to be submitted by emailing them to response@ocgov.com. The comments will be distributed to all of the Directors prior to the meeting. If you wish to comment on a specific agenda item, please identify the item in your email. In order to ensure that staff has the ability to provide comments to the Directors in a timely manner, please submit your comments prior to noon the day before the meeting. Written public comments will be made available to the public upon request.

*All supporting documentation is available for public review online at:
www.OCHFT.org and in the office of the Clerk of the Board of Supervisors located in the
County Administration North building, 400 W. Civic Center Drive, 6th Floor,
Santa Ana, California 92701 during regular business hours,
8:00 a.m. - 5:00 p.m., Monday through Friday.*

CALL TO ORDER

PLEDGE OF ALLEGIANCE

ROLL CALL

CONSENT CALENDAR ITEMS:

1. Approve OCHFT minutes from January 21, 2026, Regular Meeting
2. Receive and File Trust Warrant Report
3. Receive and File information on Annual Conflict of Interest FPPC Form 700 filing due April 1, 2026

DISCUSSION ITEMS:

4. Approve amendment 1 to agreement with Mobius Planning, LLC for Notice of Funding Ability (NOFA) administration support services extending term through May 31, 2026 (\$2499.75 flat fee per month); and authorize Trust Manager to execute amendment
5. Approve contract with K&M Enterprises: Research and Fund Development, Inc. for fundraising and grant writing consultant services, three-year term (\$300,000 per year); and authorize Trust Manager to execute contract

HOUSING TRUST MANAGER REPORT:

6. Oral Report from the Housing Trust Manager

PUBLIC COMMENTS:

At this time members of the public may address the Trust on any matter not on the agenda but within the subject matter jurisdiction of the Trust.

DIRECTOR COMMENTS:

ADJOURNED:

NEXT MEETING: May 20, 2026, 10:00 A.M.

Agenda Item 1

**REGULAR MEETING
SUMMARY ACTION MINUTES
ORANGE COUNTY HOUSING FINANCE TRUST
(OCHFT)
BOARD OF DIRECTORS**

WEDNESDAY, JANUARY 21, 2025 - 10:00 A.M.

KATRINA FOLEY
Chair

MELINDA LIU
Vice Chair

VICENTE SARMIENTO
Director

GRACEY VAN DER MARK
Director

SHARI FREIDENRICH
Director

NORMA CAMPOS KURTZ
Director

ANDREW HAMILTON
Director

MIKE FROST
Director

JESSE LOPEZ
Director

Trust Manger
Louis McClure

Trust Counsel
Ray Diaz

Clerk of the Trust
Valerie Sanchez

ATTENDANCE: Directors: Foley, Frost, Hamilton, Liu, Lopez, Sarmiento and Van Der Mark

ABSENT: Directors: Campos Kurtz and Freidenrich

PRESENT: Trust Counsel
Clerk of the Trust
Trust Manager

Ray Diaz
Valerie Sanchez
Louis McClure

CALL TO ORDER

The Chair called the meeting to order at 10:04 a.m.

PLEDGE OF ALLEGIANCE

Director Sarmiento led the pledge of allegiance

ROLL CALL

The Clerk called the roll and confirmed quorum present

CONSENT CALENDAR:

1. Approve OCHFT minutes from December 3, 2025, Special Meeting
2. Receive and File Trust Warrant Report

On the motion of Director Sarmiento, seconded by Director Van Der Mark, the Board approved the consent calendar as recommended

DISCUSSION ITEMS:

3. Adopt resolution appointing Louis McClure as Trust Manager, effective January 1, 2026 and adopt resolution authorizing Trust Manager to execute Local Housing Trust Fund applications, standard agreements and related documents

On the motion of Chair Foley, seconded by Director Hamilton, the Board approved as recommended

Reso 26-001 and 26-002

4. Approve amendment 1 to contract with Corporation for Supportive Housing for financial analysis services and authorize Trust Manager to execute amendment

On the motion of Director Sarmiento, seconded by Director Liu, the Board approved as recommended

HOUSING TRUST MANAGER REPORT:

5. Oral Report from the Housing Trust Manager

Trust Manager Louis McClure announced that Grant Henninger had agreed to stay on under a bridge contract while the RFP for administrative planning and support services is underway and scheduled to close on February 13, 2026; announced that he and Trust Counsel are reviewing documents for CalOptima Health's Pre-development Loan Program and coming back to the Board at the March meeting; invited Dylan Wright, Director of OC Community Resources to give an update on the Southern California Association of Government's (SCAG) REAP 2.0 Grant with \$20 million available with maximum award of \$5 million and noted the grant application was submitted on January 20th with funding awards expected in March and will come back to the Trust Board to allocate any grant award funding for eligible projects.

PUBLIC COMMENTS:

None

DIRECTOR COMMENTS:

All Directors present welcomed new Trust Manager Louis McClure and new Assistant Clerk Dora Guillen to the team.

Chair Foley – Discussed the California Legislature is considering three new housing bond measures, AB417, AB736 and AB590 to raise a combined \$12 Billion for housing; our lobbyists are working to ask for at least \$500 Million of that funding for the Local Housing Trust Fund (LHTF) Program and urged Directors and member cities to consider sending additional letters of support for the bills if amended to include LHTF funding; also hopes to get selection of a fundraising vendor on the next agenda.

ADJOURNED: 10:22 a.m.

NEXT MEETING: March 18, 2026, 10:00 a.m.

KATRINA FOLEY
Chair, Orange County Housing Finance Trust

VALERIE SANCHEZ
Clerk of the Orange County Housing Finance Trust

Agenda Item 2

Orange County Housing Finance Trust

Fiscal Year 2025-2026

Warrant Report

As of 2/28/2026

Legal Name	Invoice #	Invoice Received	Check/EFT #	Check Issued	Description	Amount
TOWNSEND PUBLIC AFFAIRS INC	24527	1/27/2026	000000901774763	1/30/2026	ADVOCACY AND LOBBYING CONSULTANT	\$ 6,000.00
CIVICHOME	2018-290	1/26/2026	202602040022193	2/4/2026	CONSULTING SERVICES OCHFT-CIVICHOME	\$ 12,752.56
TOWNSEND PUBLIC AFFAIRS INC	24686	2/2/2026	000000901775588	2/5/2026	ADVOCACY AND LOBBYING CONSULTANT	\$ 6,000.00
US BANK	0126 OCCR	1/22/2026	202602170022461	2/17/2026	SOFTWARE SUBSCRIPTION	\$ 480.00
MOBIUS PLANNING LLC	182	2/2/2026	000000901780577	2/26/2026	ADMINISTRATIVE PLANNING CONSULTANT	\$ 2,499.75

Agenda Item 3

AGENDA STAFF REPORT

MEETING DATE: March 18, 2026

CONTACT PERSON(S): Valerie Sanchez (714) 834-5216, Ray Diaz (714) 834-3300

SUBJECT: Annual Conflict of Interest Form 700 Filing

PRIOR BOARD ACTION: N/A

APPLICABLE STRATEGIC PLAN GOAL(S): N/A

RECOMMENDED ACTION(S):

1. Receive and File information on Annual Conflict of Interest Form 700 Filing due April 1, 2026.

BACKGROUND INFORMATION:

The Orange County Housing Finance Trust Board of Directors (OCHFT) are required to file Statements of Economic Interests (Form 700) upon assuming office, annually while in office, and again upon leaving office.

As County and City elected officials you likely hold multiple positions requiring you to file a Form 700 with multiple agencies. Elected officials under Section 87200 of the Political Reform Act must file their Form 700 directly with the FPPC, and as a Director of the OCHFT you must also file a Form 700 with the County of Orange. For this reason, Section 1 of the Form 700 allows you to file for multiple positions on one filing by listing the agencies and positions you hold on an attached list.

However, the FPPC and the County have separate filing systems that are not connected, so there are a few ways you can ensure your filings are completed with both entities.

First is to file your Form 700 with the FPPC at <https://form700.fppc.ca.gov> with your multiple positions list attached and once submitted, download your Form 700 as a pdf and forward a copy to Valerie Sanchez via email and we will upload your Form 700 into the County's system.

Another option is to file your Form 700 through the FPPC's online portal and then file again using the County's online portal at <https://www.southtechhosting.com/OrangeCounty/eDisclosure/Default.aspx> however this method does require you to enter all your information again in our system.

Alternatively, you can use Attachment A to fill in your information and submit a copy to each filing officer of the entities for which you are a designated filer.

ATTACHMENTS:

Attachment A – FPPC Form 700

2025-2026 Statement of Economic Interests



Form 700

A Public Document

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Helpful Resources

- Video Tutorials
- Reference Pamphlet
- Excel Version
- FAQs
- Gift and Travel Fact Sheet for State and Local Officials

California Fair Political Practices Commission

1102 Q Street, Suite 3050 • Sacramento, CA 95811

Email Advice: advice@fppc.ca.gov

Toll-free advice line: 1 (866) ASK-FPPC • 1 (866) 275-3772

Telephone: (916) 322-5660 • Website: www.fppc.ca.gov

December 2025

Quick Start Guide
Detailed instructions begin on page 3.

WHEN IS THE ANNUAL STATEMENT DUE?

- March 2 – Elected State Officers, Judges (Supreme, Appellate, Superior Court), Retired Judges, Pro Tem Judges, Court Commissioners, State Board and Commission members listed in Government Code Section 87200
- April 1 – Most other filers

WHERE DO I FILE?

Most people file the Form 700 with their agency. Certain filers are required to file electronically with the FPPC. (See next page). If you're not sure where to file your Form 700, contact your filing officer or the person who asked you to complete it.

ITEMS TO NOTE!

- The Form 700 is a public document.
- Only filers serving in active military duty may receive an extension on the filing deadline.
- You must also report interests held by your spouse or registered domestic partner.
- Your agency's conflict of interest code will help you to complete the Form 700. You are encouraged to get your conflict of interest code from the person who asked you to complete the Form 700.

NOTHING TO REPORT?

Mark the "No reportable interests" box on Part 4 of the Cover Page, and submit only the signed Cover Page. Please review each schedule carefully!

Schedule	Common Reportable Interests	Common Non-Reportable Interests
A-1: Investments	Stocks, including those held in an IRA or 401K. Each stock must be listed.	Insurance policies, government bonds, diversified mutual funds, funds similar to diversified mutual funds.
A-2: Business Entities/Trusts	Business entities, sole proprietorships, partnerships, LLCs, corporations and trusts. (e.g., Form 1099 filers).	Savings and checking accounts, cryptocurrency, and annuities.
B: Real Property	Rental property in filer's jurisdiction, or within two miles of the boundaries of the jurisdiction.	A residence used exclusively as a personal residence (such as a home or vacation property).
C: Income	Non-governmental salaries. Note that filers are required to report only half of their spouse's or partner's salary.	Governmental salary (from school district, for example).
D: Gifts	Gifts from businesses, vendors, or other contractors (meals, tickets, etc.).	Gifts from family members.
E: Travel Payments	Travel payments from third parties (not your employer).	Travel paid by your government agency.

Note: Like reportable interests, non-reportable interests may also create conflicts of interest and could be grounds for disqualification from certain decisions.

QUESTIONS?

- advice@fppc.ca.gov
- (866) 275-3772 Mon-Thurs, 9-11:30 a.m.

E-FILEING ISSUES?

- If using your agency's system, please contact technical support at your agency.
- If using FPPC's e-filing system, write to form700@fppc.ca.gov.

What to Know

What's New

Gift Limit Increase

The gift limit increased to **\$630** for calendar years **2025** and **2026**. The gift limit in calendar year 2024 was \$590.

Required Electronic Filing for FPPC (Section 87500) Filers

Certain candidates and officials specified in Section 87500 are now required to file their Form 700 electronically using the FPPC's e-filing system. Filers for the offices listed under Section 87500 should contact the FPPC at form700@fppc.ca.gov to obtain their login and password information.

Reporting Prospective Employment

Effective January 1, 2026, Section 87200 Filers must report any arrangement for prospective employment on attachment Form 700-P. Attachment Form 700-P is filed electronically via the FPPC's e-filing portal. (See Reference Pamphlet, page 16, for more information.)

Who must file:

- Elected and appointed officials and candidates listed in Government Code Section 87200
- Employees, appointed officials, and consultants filing pursuant to a conflict of interest code ("code filers"). **Obtain your disclosure categories, which describe the interests you must report, from your agency;** they are not part of the Form 700
- Candidates running for local elective offices that are designated in a conflict of interest code (e.g., county sheriffs, city clerks, school board trustees, and water board members)

Exception:

- Candidates for a county central committee are not required to file the Form 700
- Employees in newly created positions of existing agencies

For more information, see Reference Pamphlet, page 3, at www.fppc.ca.gov.

Where to file:

Code Filers — State and Local Officials, Employees, and Consultants Designated in a Conflict of Interest Code:

File with your agency, board, or commission unless otherwise specified in your agency's code (e.g., Legislative staff files directly with FPPC). In most cases, the agency, board, or commission will retain the statements.

Members of Newly Created Boards and Commissions: File with your agency or with your agency's code reviewing body pursuant to Regulation 18754.

Employees in Newly Created Positions of Existing Agencies: File with your agency or with your agency's code reviewing body. (See Reference Pamphlet, page 3.)

Multi-County Agencies, Boards, Commissions: File with your agency, board, or commission unless otherwise specified in your agency's code. Please review your agency's conflict of interest code as some multi-county offices are required to file electronically with the FPPC. In most cases, the agency, board, or commission will retain the statements.

87200 State Filers, for offices not specified in Section 87500, file as follows: File with your agency, board, or commission unless otherwise specified in your agency's code. Please review your agency's conflict of interest code as some 87200 state offices are required to file electronically with the FPPC. In most cases, the agency, board, or commission will retain the statements.

87200.5 Filers — Groundwater Sustainability Agency:

Members of the Board of Directors and Executives (e.g., Executive Director, General Manager, or other equivalent position) file electronically with the FPPC.

Officials and Candidates Specified in Section 87500, FPPC

Filers: The Act requires that the following officeholders and candidates for the positions listed below file electronically using the FPPC's e-filing system.

- Statewide elected officers and candidates for statewide elective office. (For a complete list of statewide elected officers please see Reference Pamphlet, Page 6.)
- Members and candidates for the Legislature and State Board of Equalization
- Designated employees of the Legislature directed to file with the FPPC by the house of the Legislature by which they are employed
- Members of the Public Utilities Commission, State Energy Resources Conservation and Development Commission, or California Coastal Commission
- Members of a state licensing or regulatory board, bureau, or commission
- Members of the Fair Political Practices Commission
- Appointed members to a state board, commission, or similar multimember body of the state if the FPPC has been designated as the filing officer in the conflict of interest code of the respective board, commission, or body. (Please contact your agency for a copy of your agency's conflict of interest code.)
- Designated employees of more than one joint powers insurance agency who elect to file a multiagency statement pursuant to Section 87350
- Judges (Supreme, Appellate, Superior Court), Retired Judges, Pro Tem Judges, court commissioners, or candidates for judge
- Officeholder or candidate for the office of district attorney, county counsel, county treasurer, or county board of supervisors
- Officeholder or candidate for the office of city council member, city treasurer, city attorney, or mayor
- County chief administrative officer, city manager, or if there is no city manager, the chief administrative officer
- County or city planning commissioner
- Head of a local government agency or member of a local government board or commission, if the FPPC has been designated as the filing officer in the conflict of interest code of the respective agency, board, or commission. (Please contact your agency for a copy of your agency's conflict of interest code.)
- A public official who manages public investments

Candidates, for offices not listed in Section 87500 above, file as follows:

- County offices (e.g., candidates running for local elective office that are designated in a conflict of interest code): File with your county elections official.
- City offices (e.g., candidates running for local elective office that are designated in a conflict of interest code): File with your City Clerk.
- Multi-county offices: File with your county elections official with whom you file your declaration of candidacy.

What to Know Continued

How to file:

The Form 700 is available at www.fppc.ca.gov. Additional PDF schedules of Form 700 are available on the FPPC's website. Form 700 schedules are also available in Excel format. Filers should always check with their filing officer to see if their agency requires a particular filing method. All statements are signed under penalty of perjury and must be verified by the filer. See Regulation 18723.1(c) for filing instructions for copies of expanded statements. Depending on your agency's requirements, statements can be required to be filed in the following formats:

Wet Signature ➡ Each Statement must have a handwritten "wet" signature. Wet signature statements can be filed either by hand delivery or mail.

Digital Signature ➡ Each statement must be signed with a verified digital signature via the filer's agency email address *if permitted by the filing officer*. The statement must be sent by email as a PDF with the digital signature affixed to the document. (See Regulations 18104 and 18757, as well as FPPC's Filing with a Digital Signature Fact Sheet for additional guidance).

Electronic Signature ➡ Each statement must be signed with a secure electronic signature submitted using an approved electronic filing system. Filers must be duly authorized by their filing officer to file electronically under Government Code Section 87500.2.

When to file:

Annual Statements

➡ March 2, 2026

- Elected State Officers
- Judges (Supreme, Appellate, Superior Court), Retired Judges, Pro Tem Judges, and Court Commissioners
- State Board and State Commission Members listed in Government Code Section 87200

➡ April 1, 2026

- Most other filers

Individuals filing under conflict of interest codes in city and county jurisdictions should verify the annual filing date with their filing official or filing officer.

Statements postmarked by the filing deadline are considered filed on time.

Statements of 30 pages or less may be emailed or faxed by the deadline as long as the originally signed paper version is sent by first class mail to the filing official within 24 hours.

Assuming Office and Leaving Office Statements

Most filers file within 30 days of assuming or leaving office or within 30 days of the effective date of a newly adopted or amended conflict of interest code.

Exception:

If you assumed office between October 1, 2025, and December 31, 2025, and filed an assuming office statement, you are not required to file an annual statement until March 1, 2027, or April 1, 2027, whichever is applicable. The annual statement will cover the day after you assumed office through December 31, 2026. (See Reference Pamphlet, page 7, for additional exceptions.)

Candidate Statements

File no later than the final filing date for the declaration of candidacy or nomination documents. A candidate statement is not required if you filed an assuming office or annual statement for the same jurisdiction within 60 days before filing a declaration of candidacy or other nomination documents.

Certain candidates listed in Government Code Section 87500, FPPC Filers, are required to file their candidate statement electronically via the FPPC's e-filing system. Please refer to Page 3, Where to File section, for the list of offices required to file electronically with FPPC. Filers for the offices listed under Section 87500 should contact the FPPC at form700@fppc.ca.gov to obtain their login and password information.

Late Statements

There is no provision for filing deadline extensions unless the filer is serving in active military duty. (See page 20 for information on penalties and fines.)

Amendments

Statements may be amended at any time. You are only required to amend the schedule that needs to be revised. It is not necessary to amend the entire filed form. The amended schedule(s) is attached to your original filed statement. Obtain amendment schedules at www.fppc.ca.gov. Filers authorized to file electronically amend their statements using their agency's electronic filing system. *Note:* If you are a candidate or officeholder listed under Government Code Section 87500, FPPC Filers, then you must amend your statements electronically using the FPPC's e-filing system.

Types of Statements

Assuming Office Statement:

If you are a newly appointed official or are newly employed in a position designated, or that will be designated, in a state or local agency's conflict of interest code, your assuming office date is the date you were sworn in or otherwise authorized to serve in the position. If you are a newly elected official, your assuming office date is the date you were sworn in.

- Report: Investments, interests in real property, and business positions held on the date you assumed the office or position must be reported. In addition, income (including loans, gifts, and travel payments) received during the 12 months prior to the date you assumed the office or position.

For positions subject to confirmation by the State Senate or the Commission on Judicial Appointments, your assuming office date is the date you were appointed or nominated to the position.

- Example: Maria Lopez was nominated by the Governor to serve on a state agency board that is subject to state Senate confirmation. The assuming office date is the date Maria's nomination is submitted to the Senate. Maria must report investments, interests in real property, and business positions Maria holds on that date, and income (including loans, gifts, and travel payments) received during the 12 months prior to that date.

If your office or position has been added to a newly adopted or newly amended conflict of interest code, use the effective date of the code or amendment, whichever is applicable.

- Report: Investments, interests in real property, and business positions held on the effective date of the code or amendment must be reported. In addition, income (including loans, gifts, and travel payments) received during the 12 months prior to the effective date of the code or amendment.

Annual Statement:

Generally, the period covered is January 1, 2025, through December 31, 2025. If the period covered by the statement is different than January 1, 2025, through December 31, 2025, (for example, you assumed office between October 1, 2024, and December 31, 2024 or you are combining statements), you must specify the period covered.

- Investments, interests in real property, business positions held, and income (including loans, gifts, and travel payments) received during the period covered by the statement must be reported. Do not change the preprinted dates on Schedules A-1, A-2, and B unless you are required to report the acquisition or disposition of an interest that did not occur in 2025.
- If your disclosure category changes during a reporting period, disclose under the old category until the effective date of the conflict of interest code amendment and disclose under the new disclosure category through the end of the reporting period.

Leaving Office Statement:

Generally, the period covered is January 1, 2025, through the date you stopped performing the duties of your position. If the period covered differs from January 1, 2025, through the date you stopped performing the duties of your position (for example, you assumed office between October 1, 2024, and December 31, 2024, or you are combining statements), the period covered must be specified. The reporting period can cover parts of two calendar years.

- Report: Investments, interests in real property, business positions held, and income (including loans, gifts, and travel payments) received during the period covered by the statement. Do not change the preprinted dates on Schedules A-1, A-2, and B unless you are required to report the acquisition or disposition of an interest that did not occur in 2025.

Candidate Statement:

If you are filing a statement in connection with your candidacy for state or local office, investments, interests in real property, and business positions held on the date of filing your declaration of candidacy must be reported. In addition, income (including loans, gifts, and travel payments) received during the 12 months prior to the date of filing your declaration of candidacy is reportable. Do not change the preprinted dates on Schedules A-1, A-2, and B.

Candidates running for local elective offices (e.g., county sheriffs, city clerks, school board trustees, or water district board members) must file candidate statements, as required by the conflict of interest code for the elected position. The code may be obtained from the agency of the elected position.

Amendments:

If you discover errors or omissions on any statement, file an amendment as soon as possible. You are only required to amend the schedule that needs to be revised; it is not necessary to refile the entire form. Obtain amendment schedules from the FPPC website at www.fppc.ca.gov.

Note: Once you file your statement, you may not withdraw it. All changes must be noted on amendment schedules.

Expanded Statement:

If you hold multiple positions subject to reporting requirements, you may be able to file an expanded statement for each position, rather than a separate and distinct statement for each position. The expanded statement must cover all reportable interests for all jurisdictions and list all positions on the Form 700 or on an attachment for which it is filed. The rules and processes governing the filing of an expanded statement are set forth in Regulation 18723.1.

STATEMENT OF ECONOMIC INTERESTS
COVER PAGE
A PUBLIC DOCUMENT

Date Initial Filing Received
Filing Official Use Only

Please type or print in ink.

NAME OF FILER (LAST) (FIRST) (MIDDLE)

1. Office, Agency, or Court

Agency Name (Do not use acronyms)

Division, Board, Department, District, if applicable

Your Position

► If filing for multiple positions, list below or on an attachment. (Do not use acronyms)

Agency: Position:

2. Jurisdiction of Office (Check at least one box)

☐ State

☐ Judge (Supreme, Appellate, Superior Court), Retired Judge, Pro Tem Judge, or Court Commissioner (Statewide Jurisdiction)

☐ Multi-County

☐ County of

☐ City of

☐ Other

3. Type of Statement (Check at least one box)

☐ **Annual:** The period covered is January 1, 2025, through December 31, 2025.

☐ **Leaving Office:** Date Left / / (Check one circle below.)

-or-

The period covered is / / , through December 31, 2025.

☐ The period covered is January 1, 2025, through the date of leaving office.

-or-

☐ The period covered is / / , through the date of leaving office.

☐ **Assuming Office:** Date assumed / /

☐ **Candidate:** Date of Election and office sought, if different than Part 1:

4. Schedule Summary (required)

► Total number of pages including this cover page:

Schedules attached

☐ **Schedule A-1 - Investments** – schedule attached

☐ **Schedule C - Income, Loans, & Business Positions** – schedule attached

☐ **Schedule A-2 - Investments** – schedule attached

☐ **Schedule D - Income – Gifts** – schedule attached

☐ **Schedule B - Real Property** – schedule attached

☐ **Schedule E - Income – Gifts – Travel Payments** – schedule attached

☐ **Attachment 700-P - Prospective Employment (87200 Filers Only)** – schedule attached

-or- ☐ **None - No reportable interests on any schedule**

5. Verification

MAILING ADDRESS STREET CITY STATE ZIP CODE
(Business or Agency Address Recommended - Public Document)

DAYTIME TELEPHONE NUMBER EMAIL ADDRESS
()

I have used all reasonable diligence in preparing this statement. I have reviewed this statement and to the best of my knowledge the information contained herein and in any attached schedules is true and complete. I acknowledge this is a public document.

I certify under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date Signed (month, day, year)

Signature (File the originally signed paper statement with your filing official.)

Instructions

Cover Page

Enter your name, mailing address, and daytime telephone number in the spaces provided. **Because the Form 700 is a public document, you may list your business/office address instead of your home address.**

Part 1. Office, Agency, or Court

- Enter the name of the office sought or held, or the agency or court. Consultants must enter the public agency name rather than their private firm's name. (Examples: State Assembly; Board of Supervisors; Office of the Mayor; Department of Finance; Hope County Superior Court).
- Indicate the name of your division, board, or district, if applicable. (Examples: Division of Waste Management; Board of Accountancy; District 45). **Do not use acronyms.**
- Enter your position title. (Examples: Director; Chief Counsel; City Council Member; Staff Services Analyst).
- If you hold multiple positions (i.e., a city council member who also is a member of a county board or commission) you may be required to file separate and distinct statements with each agency. To simplify your filing obligations, in some cases you may instead complete a single expanded statement and file it with each agency.
 - The rules and processes governing the filing of an expanded statement are set forth in Regulation 18723.1. To file an expanded statement for multiple positions, enter the name of each agency with which you are required to file and your position title with each agency in the space provided. **Do not use acronyms.** Attach an additional sheet if necessary. Complete one statement disclosing all reportable interests for all jurisdictions. Then file the expanded statement with each agency as directed by Regulation 18723.1(c).

If you assume or leave a position after a filing deadline, you must complete a separate statement. For example, a city council member who assumes a position with a county special district after the April annual filing deadline must file a separate assuming office statement. In subsequent years, the city council member may expand their annual filing to include both positions.

Example:

Brian Bourne is a city council member for the City of Lincoln and a board member for the Camp Far West Irrigation District – a multi-county agency that covers the Counties of Placer and Yuba. The City is located within Placer County. Brian may complete one expanded statement to disclose all reportable interests for both offices and list both positions on the Cover Page. Brian will file the expanded statement with each the City and the District as directed by Regulation 18723.1(c).

Part 2. Jurisdiction of Office

- Check the box indicating the jurisdiction of your agency and, if applicable, identify the jurisdiction. Judges, judicial candidates, and court commissioners have statewide jurisdiction. All other filers should review the Reference Pamphlet, page 14, to determine their jurisdiction.
- If your agency is a multi-county office, list each county in which your agency has jurisdiction.

- If your agency is not a state office, court, county office, city office, or multi-county office (e.g., school districts, special districts and JPAs), check the “other” box and enter the county or city in which the agency has jurisdiction.

Example:

This filer is a member of a water district board with jurisdiction in portions of Yuba and Sutter Counties.

1. Office, Agency, or Court	
Agency Name (Do not use acronyms) Feather River Irrigation District	
Division, Board, Department, District, if applicable N/A	Your Position Board Member
► If filing for multiple positions, list below or on an attachment. (Do not use acronyms)	
Agency: N/A	Position:
2. Jurisdiction of Office (Check at least one box)	
☐ State	☐ Judge or Court Commissioner (Statewide Jurisdiction)
☒ Multi-County Yuba & Sutter Counties	☐ County of
☐ City of	☐ Other

Part 3. Type of Statement

Check at least one box. The period covered by a statement is determined by the type of statement you are filing. If you are completing a 2025 annual statement, **do not** change the pre-printed dates to reflect 2026. Your annual statement is used for reporting the **previous year's** economic interests. Economic interests for your annual filing covering January 1, 2026, through December 31, 2026, will be disclosed on your statement filed in 2027. See Reference Pamphlet, page 4.

Combining Statements: Certain types of statements for the same position may be combined. For example, if you leave office after January 1, but before the deadline for filing your annual statement, you may combine your annual and leaving office statements. File by the earliest deadline. Consult your filing officer or the FPPC.

Part 4. Schedule Summary

- Complete the Schedule Summary after you have reviewed each schedule to determine if you have reportable interests.
- Enter the total number of completed pages including the cover page and either check the box for each schedule you use to disclose interests; **or** if you have nothing to disclose on any schedule, check the “No reportable interests” box. Please **do not** attach any blank schedules.

Part 5. Verification

Complete the verification by signing the statement and entering the date signed. Each statement must have an original “wet” signature unless filed with a secure electronic signature. (See page 4 above.) All statements must be signed under penalty of perjury and be verified by the filer pursuant to Government Code Section 81004. See Regulation 18723.1(c) for filing instructions for copies of expanded statements.

When you sign your statement, you are stating, under penalty of perjury, that it is true and correct. Only the filer has authority to sign the statement. An unsigned statement is not considered filed and you may be subject to late filing penalties.

SCHEDULE A-1

Investments

Stocks, Bonds, and Other Interests

(Ownership Interest is Less Than 10%)

Investments must be itemized.

Do not attach brokerage or financial statements.

CALIFORNIA FORM **700**

FAIR POLITICAL PRACTICES COMMISSION

Name

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF THIS BUSINESS

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000
☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock ☐ Other _____ (Describe)
☐ Partnership ☐ Income Received of \$0 - \$499
☐ Income Received of \$500 or More (Report on Schedule C)

IF APPLICABLE, LIST DATE:

____/____/25 ____/____/25
ACQUIRED DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF THIS BUSINESS

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000
☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock ☐ Other _____ (Describe)
☐ Partnership ☐ Income Received of \$0 - \$499
☐ Income Received of \$500 or More (Report on Schedule C)

IF APPLICABLE, LIST DATE:

____/____/25 ____/____/25
ACQUIRED DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF THIS BUSINESS

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000
☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock ☐ Other _____ (Describe)
☐ Partnership ☐ Income Received of \$0 - \$499
☐ Income Received of \$500 or More (Report on Schedule C)

IF APPLICABLE, LIST DATE:

____/____/25 ____/____/25
ACQUIRED DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF THIS BUSINESS

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000
☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock ☐ Other _____ (Describe)
☐ Partnership ☐ Income Received of \$0 - \$499
☐ Income Received of \$500 or More (Report on Schedule C)

IF APPLICABLE, LIST DATE:

____/____/25 ____/____/25
ACQUIRED DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF THIS BUSINESS

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000
☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock ☐ Other _____ (Describe)
☐ Partnership ☐ Income Received of \$0 - \$499
☐ Income Received of \$500 or More (Report on Schedule C)

IF APPLICABLE, LIST DATE:

____/____/25 ____/____/25
ACQUIRED DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF THIS BUSINESS

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000
☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock ☐ Other _____ (Describe)
☐ Partnership ☐ Income Received of \$0 - \$499
☐ Income Received of \$500 or More (Report on Schedule C)

IF APPLICABLE, LIST DATE:

____/____/25 ____/____/25
ACQUIRED DISPOSED

Comments: _____

Instructions – Schedules A-1 and A-2 Investments

“Investment” means a financial interest in any business entity (including a consulting business or other independent contracting business) that is located in, doing business in, planning to do business in, or that has done business during the previous two years in your agency’s jurisdiction in which you, your spouse or registered domestic partner, or your dependent children had a direct, indirect, or beneficial interest totaling \$2,000 or more at any time during the reporting period. (See Reference Pamphlet, page 14.)

Reportable investments include:

- Stocks, bonds, warrants, and options, including those held in margin or brokerage accounts and managed investment funds (See Reference Pamphlet, page 14.)
- Sole proprietorships
- Your own business or your spouse’s or registered domestic partner’s business (See Reference Pamphlet, page 9, for the definition of “business entity.”)
- Your spouse’s or registered domestic partner’s investments even if they are legally separate property
- Partnerships (e.g., a law firm or family farm)
- Investments in reportable business entities held in a retirement account (See Reference Pamphlet, page 16.)
- If you, your spouse or registered domestic partner, and dependent children together had a 10% or greater ownership interest in a business entity or trust (including a living trust), you must disclose investments held by the business entity or trust. (See Reference Pamphlet, page 17, for more information on disclosing trusts.)
- Business trusts

You are not required to disclose:

- Government bonds, diversified mutual funds, certain funds similar to diversified mutual funds (such as exchange traded funds) and investments held in certain retirement accounts. (See Reference Pamphlet, page 14.) (Regulation 18237)
- Bank accounts, savings accounts, money market accounts and certificates of deposits
- Cryptocurrency
- Insurance policies
- Annuities
- Commodities
- Shares in a credit union
- Government bonds (including municipal bonds)

Reminders

- Do you know your agency’s jurisdiction?
- Did you hold investments at any time during the period covered by this statement?
- Code filers – your disclosure categories may only require disclosure of specific investments.

- Retirement accounts invested in non-reportable interests (e.g., insurance policies, mutual funds, or government bonds) (See Reference Pamphlet, page 16.)
- Government defined-benefit pension plans (such as CalPERS and CalSTRS plans)
- Certain interests held in a blind trust (See Reference Pamphlet, page 17.)

Use Schedule A-1 to report ownership of less than 10% (e.g., stock). Schedule C (Income) may also be required if the investment is not a stock or corporate bond. (See second example below.)

Use Schedule A-2 to report ownership of 10% or greater (e.g., a sole proprietorship).

To Complete Schedule A-1:

Do not attach brokerage or financial statements.

- Disclose the name of the business entity. Do not use acronyms for the name of the business entity, unless it is one that is commonly understood by the public.
- Provide a general description of the business activity of the entity (e.g., pharmaceuticals, computers, automobile manufacturing, or communications).
- Check the box indicating the highest fair market value of your investment during the reporting period. If you are filing a candidate or an assuming office statement, indicate the fair market value on the filing date or the date you took office, respectively. (See page 21 for more information.)
- Identify the nature of your investment (e.g., stocks, warrants, options, or bonds).
- An acquired or disposed of date is only required if you initially acquired or entirely disposed of the investment interest during the reporting period. The date of a stock dividend reinvestment or partial disposal is not required. Generally, these dates will not apply if you are filing a candidate or an assuming office statement.

Examples:

Frank Byrd holds a state agency position. Frank’s conflict of interest code requires full disclosure of investments. Frank must disclose stock holdings of \$2,000 or more in any company that is located in or does business in California, as well as those stocks held by Frank’s spouse or registered domestic partner and dependent children.

Alice Lance is a city council member. Alice has a 4% interest, worth \$5,000, in a limited partnership located in the city. Alice must disclose the partnership on Schedule A-1 and income of \$500 or more received from the partnership on Schedule C.

SCHEDULE A-2
Investments, Income, and Assets
of Business Entities/Trusts
(Ownership Interest is 10% or Greater)

CALIFORNIA FORM 700
FAIR POLITICAL PRACTICES COMMISSION
Name _____

▶ 1. BUSINESS ENTITY OR TRUST	
Name _____	
Address (Business Address Acceptable) _____	
Check one ☐ Trust, go to 2 ☐ Business Entity, complete the box, then go to 2	
GENERAL DESCRIPTION OF THIS BUSINESS	
FAIR MARKET VALUE ☐ \$0 - \$1,999 ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000 ☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000	IF APPLICABLE, LIST DATE: _____/_____/25 ____/_____/25 ACQUIRED DISPOSED
NATURE OF INVESTMENT ☐ Partnership ☐ Sole Proprietorship ☐ _____ Other	
YOUR BUSINESS POSITION _____	

▶ 2. IDENTIFY THE GROSS INCOME RECEIVED (INCLUDE YOUR PRO RATA SHARE OF THE GROSS INCOME TO THE ENTITY/TRUST)	
☐ \$0 - \$499 ☐ \$500 - \$1,000 ☐ \$1,001 - \$10,000	☐ \$10,001 - \$100,000 ☐ OVER \$100,000

▶ 3. LIST THE NAME OF EACH REPORTABLE SINGLE SOURCE OF INCOME OF \$10,000 OR MORE (Attach a separate sheet if necessary.)	
☐ None or ☐ Names listed below	

▶ 4. INVESTMENTS AND INTERESTS IN REAL PROPERTY HELD OR LEASED BY THE BUSINESS ENTITY OR TRUST	
Check one box: ☐ INVESTMENT ☐ REAL PROPERTY	
Name of Business Entity, if Investment, or Assessor's Parcel Number or Street Address of Real Property _____	
Description of Business Activity or City or Other Precise Location of Real Property _____	
FAIR MARKET VALUE ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000 ☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000	IF APPLICABLE, LIST DATE: _____/_____/25 ____/_____/25 ACQUIRED DISPOSED
NATURE OF INTEREST ☐ Property Ownership/Deed of Trust ☐ Stock ☐ Partnership	
☐ Leasehold _____ Yrs. remaining ☐ Other _____	
☐ Check box if additional schedules reporting investments or real property are attached	

▶ 1. BUSINESS ENTITY OR TRUST	
Name _____	
Address (Business Address Acceptable) _____	
Check one ☐ Trust, go to 2 ☐ Business Entity, complete the box, then go to 2	
GENERAL DESCRIPTION OF THIS BUSINESS	
FAIR MARKET VALUE ☐ \$0 - \$1,999 ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000 ☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000	IF APPLICABLE, LIST DATE: _____/_____/25 ____/_____/25 ACQUIRED DISPOSED
NATURE OF INVESTMENT ☐ Partnership ☐ Sole Proprietorship ☐ _____ Other	
YOUR BUSINESS POSITION _____	

▶ 2. IDENTIFY THE GROSS INCOME RECEIVED (INCLUDE YOUR PRO RATA SHARE OF THE GROSS INCOME TO THE ENTITY/TRUST)	
☐ \$0 - \$499 ☐ \$500 - \$1,000 ☐ \$1,001 - \$10,000	☐ \$10,001 - \$100,000 ☐ OVER \$100,000

▶ 3. LIST THE NAME OF EACH REPORTABLE SINGLE SOURCE OF INCOME OF \$10,000 OR MORE (Attach a separate sheet if necessary.)	
☐ None or ☐ Names listed below	

▶ 4. INVESTMENTS AND INTERESTS IN REAL PROPERTY HELD OR LEASED BY THE BUSINESS ENTITY OR TRUST	
Check one box: ☐ INVESTMENT ☐ REAL PROPERTY	
Name of Business Entity, if Investment, or Assessor's Parcel Number or Street Address of Real Property _____	
Description of Business Activity or City or Other Precise Location of Real Property _____	
FAIR MARKET VALUE ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000 ☐ \$100,001 - \$1,000,000 ☐ Over \$1,000,000	IF APPLICABLE, LIST DATE: _____/_____/25 ____/_____/25 ACQUIRED DISPOSED
NATURE OF INTEREST ☐ Property Ownership/Deed of Trust ☐ Stock ☐ Partnership	
☐ Leasehold _____ Yrs. remaining ☐ Other _____	
☐ Check box if additional schedules reporting investments or real property are attached	

Comments: _____

Instructions – Schedule A-2

Investments, Income, and Assets of Business Entities/Trusts

Use Schedule A-2 to report investments in a business entity (including a consulting business or other independent contracting business) or trust (including a living trust) in which you, your spouse or registered domestic partner, and your dependent children, together or separately, had a 10% or greater interest, totaling \$2,000 or more, during the reporting period and which is located in, doing business in, planning to do business in, or which has done business during the previous two years in your agency's jurisdiction. (See Reference Pamphlet, page 14.) A trust located outside your agency's jurisdiction is reportable if it holds assets that are located in or doing business in the jurisdiction. Do not report a trust that contains non-reportable interests. For example, a trust containing only your personal residence not used in whole or in part as a business, your savings account, and some municipal bonds, is not reportable.

Also report on Schedule A-2 investments and real property held by that entity or trust if your pro rata share of the investment or real property interest was \$2,000 or more during the reporting period.

To Complete Schedule A-2:

Part 1. Disclose the name and address of the business entity or trust. If you are reporting an interest in a business entity, check "Business Entity" and complete the box as follows:

- Provide a general description of the business activity of the entity.
- Check the box indicating the highest fair market value of your investment during the reporting period.
- If you initially acquired or entirely disposed of this interest during the reporting period, enter the date acquired or disposed.
- Identify the nature of your investment.
- Disclose the job title or business position you held with the entity, if any (i.e., if you were a director, officer, partner, trustee, employee, or held any position of management). A business position held by your spouse is not reportable.

Part 2. Check the box indicating **your pro rata** share of the **gross** income received **by** the business entity or trust. This amount includes your pro rata share of the **gross** income **from** the business entity or trust, as well as your community property interest in your spouse's or registered domestic partner's share. Gross income is the total amount of income before deducting expenses, losses, or taxes.

Part 3. Disclose the name of each source of income that is located in, doing business in, planning to do business in, or that has done business during the previous two years in your agency's jurisdiction, as follows:

- Disclose each source of income and outstanding loan **to the business entity or trust** identified in Part 1 if your pro rata share of the **gross** income (including your community property interest in your spouse's or registered domestic partner's share) to the business entity or trust from that source was \$10,000 or more during the reporting period. (See Reference Pamphlet, page 12, for examples.) Income from governmental sources may be reportable if not considered salary. See Regulation 18232. Loans from commercial lending institutions made in the lender's regular course of business on terms available to members of the public without regard to your official status are not reportable.
- Disclose each individual or entity that was a source of commission income of \$10,000 or more during the reporting period through the business entity identified in Part 1. (See Reference Pamphlet, page 9.)

You may be required to disclose sources of income located outside your jurisdiction. For example, you may have a client who resides outside your jurisdiction who does business on a regular basis with you. Such a client, if a reportable source of \$10,000 or more, must be disclosed.

Mark "None" if you do not have any reportable \$10,000 sources of income to disclose. Phrases such as "various clients" or "not disclosing sources pursuant to attorney-client privilege" are not adequate disclosure. (See Reference Pamphlet, page 15, for information on procedures to request an exemption from disclosing privileged information.)

Part 4. Report any investments or interests in real property held or leased **by the entity or trust** identified in Part 1 if your pro rata share of the interest held was \$2,000 or more during the reporting period. Attach additional schedules or use FPPC's Form 700 Excel spreadsheet if needed.

- Check the applicable box identifying the interest held as real property or an investment.
- If investment, provide the name and description of the business entity.
- If real property, report the precise location (e.g., an assessor's parcel number or address).
- Check the box indicating the highest fair market value of your interest in the real property or investment during the reporting period. (Report the fair market value of the portion of your residence claimed as a tax deduction if you are utilizing your residence for business purposes.)
- Identify the nature of your interest.
- Enter the date acquired or disposed only if you initially acquired or entirely disposed of your interest in the property or investment during the reporting period.

Instructions – Schedule B

Interests in Real Property

Report interests in real property located in your agency's jurisdiction in which you, your spouse or registered domestic partner, or your dependent children had a direct, indirect, or beneficial interest totaling \$2,000 or more any time during the reporting period. Real property is also considered to be "within the jurisdiction" of a local government agency if the property or any part of it is located within two miles outside the boundaries of the jurisdiction or within two miles of any land owned or used by the local government agency. (See Reference Pamphlet, page 14.)

Interests in real property include:

- An ownership interest (including a beneficial ownership interest)
- A deed of trust, easement, or option to acquire property
- A leasehold interest (See Reference Pamphlet, page 15.)
- A mining lease
- An interest in real property held in a retirement account (See Reference Pamphlet, page 16.)
- An interest in real property held by a business entity or trust in which you, your spouse or registered domestic partner, and your dependent children together had a 10% or greater ownership interest (Report on Schedule A-2.)
- Your spouse's or registered domestic partner's interests in real property that are legally held separately by him or her

You are not required to report:

- A residence, such as a home or vacation cabin, used exclusively as a personal residence (However, a residence in which you rent out a room or for which you claim a business deduction may be reportable. If reportable, report the fair market value of the portion claimed as a tax deduction.)
- Some interests in real property held through a blind trust (See Reference Pamphlet, page 17.)
 - **Please note:** A non-reportable property can still be grounds for a conflict of interest and may be disqualifying.

To Complete Schedule B:

- Report the precise location (e.g., an assessor's parcel number or address) of the real property.
- Check the box indicating the fair market value of your interest in the property (regardless of what you owe on the property).
- Enter the date acquired or disposed only if you initially acquired or entirely disposed of your interest in the property during the reporting period.
- Identify the nature of your interest. If it is a leasehold, disclose the number of years remaining on the lease.

Reminders

- Income and loans already reported on Schedule B are not also required to be reported on Schedule C.
- Real property already reported on Schedule A-2, Part 4 is not also required to be reported on Schedule B.
- Code filers – do your disclosure categories require disclosure of real property?

- If you received rental income, check the box indicating the gross amount you received.
- If you had a 10% or greater interest in real property and received rental income, list the name of the source(s) if your pro rata share of the gross income from any single tenant was \$10,000 or more during the reporting period. If you received a total of \$10,000 or more from two or more tenants acting in concert (in most cases, this will apply to married couples), disclose the first and last name of each tenant. Otherwise, mark "None."
- Loans from a private lender that total \$500 or more and are secured by real property may be reportable. **Loans from commercial lending institutions made in the lender's regular course of business on terms available to members of the public without regard to your official status are not reportable.**

When reporting a loan:

- Provide the name and address of the lender.
- Describe the lender's business activity.
- Disclose the interest rate and term of the loan. For variable interest rate loans, disclose the conditions of the loan (e.g., Prime + 2) or the average interest rate paid during the reporting period. The term of a loan is the total number of months or years given for repayment of the loan at the time the loan was established.
- Check the box indicating the highest balance of the loan during the reporting period.
- Identify a guarantor, if applicable.

If you have more than one reportable loan on a single piece of real property, report the additional loan(s) on Schedule C.

Example:

Allison Gande is a city planning commissioner. During the reporting period, Allison received rental income of \$12,000, from a single tenant who rented property owned in the city's jurisdiction. If Allison received \$6,000 each from two tenants, the tenants' names would not be required because no single tenant paid her \$10,000 or more. A married couple is considered a single tenant.

ASSESSOR'S PARCEL NUMBER OR STREET ADDRESS 4600 24th Street	
CITY Sacramento	
FAIR MARKET VALUE ☐ \$2,000 - \$10,000 ☐ \$10,001 - \$100,000 ☒ \$100,001 - \$1,000,000 ☐ Over \$1,000,000	IF APPLICABLE, LIST DATE: ____/____/XX ACQUIRED ____/____/XX DISPOSED
NATURE OF INTEREST ☐ Ownership/Deed of Trust ☐ Easement ☐ Leasehold Yrs. remaining: _____ Other: _____	
IF RENTAL PROPERTY, GROSS INCOME RECEIVED ☐ \$0 - \$499 ☐ \$500 - \$1,000 ☐ \$1,001 - \$10,000 ☒ \$10,001 - \$100,000 ☐ OVER \$100,000	
SOURCES OF RENTAL INCOME: If you own a 10% or greater interest, list the name of each tenant that is a single source of income of \$10,000 or more. ☐ None Henry Wells	
NAME OF LENDER* Sophia Petroillo	
ADDRESS (Business Address Acceptable) 2121 Blue Sky Parkway, Sacramento	
BUSINESS ACTIVITY, IF ANY, OF LENDER Restaurant Owner	
INTEREST RATE 8 % ☐ None	TERM (Months/Years) 15 Years
HIGHEST BALANCE DURING REPORTING PERIOD ☐ \$500 - \$1,000 ☐ \$1,001 - \$10,000 ☒ \$10,001 - \$100,000 ☐ OVER \$100,000	
☐ Guarantor, if applicable	
Comments:	

SCHEDULE C
Income, Loans, & Business
Positions
(Other than Gifts and Travel Payments)

CALIFORNIA FORM 700
FAIR POLITICAL PRACTICES COMMISSION
Name

▶ 1. INCOME RECEIVED	▶ 1. INCOME RECEIVED
NAME OF SOURCE OF INCOME 	NAME OF SOURCE OF INCOME
ADDRESS (Business Address Acceptable) 	ADDRESS (Business Address Acceptable)
BUSINESS ACTIVITY, IF ANY, OF SOURCE 	BUSINESS ACTIVITY, IF ANY, OF SOURCE
YOUR BUSINESS POSITION 	YOUR BUSINESS POSITION
GROSS INCOME RECEIVED ☐ No Income - Business Position Only	GROSS INCOME RECEIVED ☐ No Income - Business Position Only
☐ \$500 - \$1,000 ☐ \$1,001 - \$10,000	☐ \$500 - \$1,000 ☐ \$1,001 - \$10,000
☐ \$10,001 - \$100,000 ☐ OVER \$100,000	☐ \$10,001 - \$100,000 ☐ OVER \$100,000
CONSIDERATION FOR WHICH INCOME WAS RECEIVED	CONSIDERATION FOR WHICH INCOME WAS RECEIVED
☐ Salary ☐ Spouse's or registered domestic partner's income (For self-employed use Schedule A-2.)	☐ Salary ☐ Spouse's or registered domestic partner's income (For self-employed use Schedule A-2.)
☐ Partnership (Less than 10% ownership. For 10% or greater use Schedule A-2.)	☐ Partnership (Less than 10% ownership. For 10% or greater use Schedule A-2.)
☐ Sale of _____ (Real property, car, boat, etc.)	☐ Sale of _____ (Real property, car, boat, etc.)
☐ Loan repayment	☐ Loan repayment
☐ Commission or ☐ Rental Income, list each source of \$10,000 or more (Describe)	☐ Commission or ☐ Rental Income, list each source of \$10,000 or more (Describe)
☐ Other _____ (Describe)	☐ Other _____ (Describe)

▶ 2. LOANS RECEIVED OR OUTSTANDING DURING THE REPORTING PERIOD

* You are not required to report loans from a commercial lending institution, or any indebtedness created as part of a retail installment or credit card transaction, made in the lender's regular course of business on terms available to members of the public without regard to your official status. Personal loans and loans received not in a lender's regular course of business must be disclosed as follows:

NAME OF LENDER* 	INTEREST RATE _____% ☐ None	TERM (Months/Years) _____
ADDRESS (Business Address Acceptable) 		
BUSINESS ACTIVITY, IF ANY, OF LENDER 		
HIGHEST BALANCE DURING REPORTING PERIOD	SECURITY FOR LOAN	
☐ \$500 - \$1,000	☐ None ☐ Personal residence	
☐ \$1,001 - \$10,000	☐ Real Property _____ Street address	
☐ \$10,001 - \$100,000	_____ City	
☐ OVER \$100,000	☐ Guarantor _____	
	☐ Other _____ (Describe)	

Comments: _____

Instructions – Schedule C

Income, Loans, & Business Positions

(Income Other Than Gifts and Travel Payments)

Reporting Income:

Report the source and amount of gross income of \$500 or more you received during the reporting period. Gross income is the total amount of income before deducting expenses, losses, or taxes and includes loans other than loans from a commercial lending institution. (See Reference Pamphlet, page 12.) You must also report the source of income to your spouse or registered domestic partner if your community property share was \$500 or more during the reporting period.

The source and income must be reported only if the source is located in, doing business in, planning to do business in, or has done business during the previous two years in your agency's jurisdiction. (See Reference Pamphlet, page 14.) Reportable sources of income may be further limited by your disclosure category located in your agency's conflict of interest code.

Reporting Business Positions:

You must report your job title with each reportable business entity even if you received no income during the reporting period. Use the comments section to indicate that no income was received.

Commonly reportable income and loans include:

- Salary/wages, per diem, and reimbursement for expenses including travel payments provided by your employer
- Community property interest (50%) in your spouse's or registered domestic partner's income - **report the employer's name and all other required information**
- Income from investment interests, such as partnerships, reported on Schedule A-1
- Commission income not required to be reported on Schedule A-2 (See Reference Pamphlet, page 9.)
- Gross income from any sale, including the sale of a house or car (Report your pro rata share of the total sale price.)
- Rental income not required to be reported on Schedule B
- Prizes or awards not disclosed as gifts
- Payments received on loans you made to others
- An honorarium received prior to becoming a public official (See Reference Pamphlet, page 11.)
- Incentive compensation (See Reference Pamphlet, page 13.)

Reminders

- Code filers – your disclosure categories may not require disclosure of all sources of income.
- 87200 Filers – if reporting prospective employment, use attachment Form 700-P available on the FPPC's e-filing portal. Do not use Schedule C to report prospective employment.
- If you or your spouse or registered domestic partner are self-employed, report the business entity on Schedule A-2.
- Do not disclose on Schedule C income, loans, or business positions already reported on Schedules A-2 or B.

You are not required to report:

- Salary, reimbursement for expenses or per diem, or social security, disability, or other similar benefit payments received by you or your spouse or registered domestic partner from a federal, state, or local government agency.
- Stock dividends and income from the sale of stock unless the source can be identified.
- Income from a PERS retirement account.

(See Reference Pamphlet, page 13.)

To Complete Schedule C:

Part 1. Income Received/Business Position Disclosure

- Disclose the name and address of each source of income or each business entity with which you held a business position.
- Provide a general description of the business activity if the source is a business entity.
- Check the box indicating the amount of gross income received.
- Identify the consideration for which the income was received.
- For income from commission sales, check the box indicating the gross income received and list the name of each source of commission income of \$10,000 or more. (See Reference Pamphlet, page 9.) **Note: If you receive commission income on a regular basis or have an ownership interest of 10% or more, you must disclose the business entity and the income on Schedule A-2.**
- Disclose the job title or business position, if any, that you held with the business entity, even if you did not receive income during the reporting period.

Part 2. Loans Received or Outstanding During the Reporting Period

- Provide the name and address of the lender.
- Provide a general description of the business activity if the lender is a business entity.
- Check the box indicating the highest balance of the loan during the reporting period.
- Disclose the interest rate and the term of the loan.
 - For variable interest rate loans, disclose the conditions of the loan (e.g., Prime + 2) or the average interest rate paid during the reporting period.
 - The term of the loan is the total number of months or years given for repayment of the loan at the time the loan was entered into.
- Identify the security, if any, for the loan.

SCHEDULE D

Income – Gifts

CALIFORNIA FORM 700
FAIR POLITICAL PRACTICES COMMISSION

Name

▶ NAME OF SOURCE <i>(Not an Acronym)</i> ADDRESS <i>(Business Address Acceptable)</i> BUSINESS ACTIVITY, IF ANY, OF SOURCE <table><thead><tr><th>DATE (mm/dd/yy)</th><th>VALUE</th><th>DESCRIPTION OF GIFT(S)</th></tr></thead><tbody><tr><td> </td><td>\$ </td><td> </td></tr><tr><td> </td><td>\$ </td><td> </td></tr><tr><td> </td><td>\$ </td><td> </td></tr></tbody></table>	DATE (mm/dd/yy)	VALUE	DESCRIPTION OF GIFT(S)		\$			\$			\$		▶ NAME OF SOURCE <i>(Not an Acronym)</i> ADDRESS <i>(Business Address Acceptable)</i> BUSINESS ACTIVITY, IF ANY, OF SOURCE <table><thead><tr><th>DATE (mm/dd/yy)</th><th>VALUE</th><th>DESCRIPTION OF GIFT(S)</th></tr></thead><tbody><tr><td> </td><td>\$ </td><td> </td></tr><tr><td> </td><td>\$ </td><td> </td></tr><tr><td> </td><td>\$ </td><td> </td></tr></tbody></table>	DATE (mm/dd/yy)	VALUE	DESCRIPTION OF GIFT(S)		\$			\$			\$	
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Comments:

Instructions – Schedule D

Income – Gifts

A gift is anything of value for which you have not provided equal or greater consideration to the donor. A gift is reportable if its fair market value is \$50 or more. In addition, multiple gifts totaling \$50 or more received during the reporting period from a single source must be reported.

It is the acceptance of a gift, not the ultimate use to which it is put, that imposes your reporting obligation. Except as noted below, you must report a gift even if you never used it or if you gave it away to another person.

If the exact amount of a gift is unknown, you must make a good faith estimate of the item's fair market value. Listing the value of a gift as "over \$50" or "value unknown" is not adequate disclosure. In addition, if you received a gift through an intermediary, you must disclose the name, address, and business activity of both the donor and the intermediary. You may indicate an intermediary either in the "source" field after the name or in the "comments" section at the bottom of Schedule D.

Commonly reportable gifts include:

- Tickets/passes to sporting or entertainment events
- Tickets/passes to amusement parks
- Parking passes not used for official agency business
- Food, beverages, and accommodations, including those provided in direct connection with your attendance at a convention, conference, meeting, social event, meal, or like gathering
- Rebates/discounts not made in the regular course of business to members of the public without regard to official status
- Wedding gifts (See Reference Pamphlet, page 17)
- An honorarium received prior to assuming office (You may report an honorarium as income on Schedule C, rather than as a gift on Schedule D, if you provided services of equal or greater value than the payment received. See Reference Pamphlet, page 11.)
- Transportation and lodging (See Schedule E.)
- Forgiveness of a loan received by you

Reminders

- Gifts from a single source are subject to a \$630 limit for calendar years 2025 and 2026. The gift limit in calendar year 2024 was \$590. (See Reference Pamphlet, page 11.)
- Code filers – you only need to report gifts from reportable sources.

You are not required to disclose:

- Gifts that were not used and that, within 30 days after receipt, were returned to the donor or delivered to a charitable organization or government agency without being claimed by you as a charitable contribution for tax purposes
- Gifts from your spouse or registered domestic partner, child, parent, grandparent, grandchild, brother, sister, and certain other family members (See Regulation 18942 for a complete list.). The exception does not apply if the donor was acting as an agent or intermediary for a reportable source who was the true donor.
- Gifts of similar value exchanged between you and an individual, other than a lobbyist registered to lobby your state agency, on holidays, birthdays, or similar occasions
- Gifts of informational material provided to assist you in the performance of your official duties (e.g., books, pamphlets, reports, calendars, periodicals, or educational seminars)
- A monetary bequest or inheritance (However, inherited investments or real property may be reportable on other schedules.)
- Personalized plaques or trophies with an individual value of less than \$250
- Campaign contributions
- Up to two tickets, for your own use, to attend a fundraiser for a campaign committee or candidate, or to a fundraiser for an organization exempt from taxation under Section 501(c)(3) of the Internal Revenue Code. The ticket must be received from the organization or committee holding the fundraiser.
- Gifts given to members of your immediate family if the source has an established relationship with the family member and there is no evidence to suggest the donor had a purpose to influence you. (See Regulation 18943.)
- Free admission, food, and nominal items (such as a pen, pencil, mouse pad, note pad or similar item) available to all attendees, at the event at which the official makes a speech (as defined in Regulation 18950(b)(2)), so long as the admission is provided by the person who organizes the event.
- Any other payment not identified above, that would otherwise meet the definition of gift, where the payment is made by an individual who is not a lobbyist registered to lobby the official's state agency, where it is clear that the gift was made because of an existing personal or business relationship unrelated to the official's position and there is no evidence whatsoever at the time the gift is made to suggest the donor had a purpose to influence you.

To Complete Schedule D:

- Disclose the full name (not an acronym), address, and, if a business entity, the business activity of the source.
- Provide the date (month, day, and year) of receipt, and disclose the fair market value and description of the gift.

SCHEDULE E
Income – Gifts
Travel Payments, Advances,
and Reimbursements

CALIFORNIA FORM 700 FAIR POLITICAL PRACTICES COMMISSION Name _____

- Mark either the gift or income box.
- Mark the “501(c)(3)” box for a travel payment received from a nonprofit 501(c)(3) organization or the “Speech” box if you made a speech or participated in a panel. Per Government Code Section 89506, these payments may not be subject to the gift limit. However, they may result in a disqualifying conflict of interest.
- For gifts of travel, provide the travel destination.

▶ NAME OF SOURCE <i>(Not an Acronym)</i> _____ ADDRESS <i>(Business Address Acceptable)</i> _____ CITY AND STATE _____ ☐ 501 (c)(3) or DESCRIBE BUSINESS ACTIVITY, IF ANY, OF SOURCE _____ DATE(S): ____/____/____ - ____/____/____ AMT: \$_____ <i>(If gift)</i> ▶ MUST CHECK ONE: ☐ Gift -or- ☐ Income ☐ Made a Speech/Participated in a Panel ☐ Other - Provide Description _____ _____ ▶ If Gift, Provide Travel Destination _____ _____

▶ NAME OF SOURCE <i>(Not an Acronym)</i> _____ ADDRESS <i>(Business Address Acceptable)</i> _____ CITY AND STATE _____ ☐ 501 (c)(3) or DESCRIBE BUSINESS ACTIVITY, IF ANY, OF SOURCE _____ DATE(S): ____/____/____ - ____/____/____ AMT: \$_____ <i>(If gift)</i> ▶ MUST CHECK ONE: ☐ Gift -or- ☐ Income ☐ Made a Speech/Participated in a Panel ☐ Other - Provide Description _____ _____ ▶ If Gift, Provide Travel Destination _____ _____

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▶ NAME OF SOURCE <i>(Not an Acronym)</i> _____ ADDRESS <i>(Business Address Acceptable)</i> _____ CITY AND STATE _____ ☐ 501 (c)(3) or DESCRIBE BUSINESS ACTIVITY, IF ANY, OF SOURCE _____ DATE(S): ____/____/____ - ____/____/____ AMT: \$_____ <i>(If gift)</i> ▶ MUST CHECK ONE: ☐ Gift -or- ☐ Income ☐ Made a Speech/Participated in a Panel ☐ Other - Provide Description _____ _____ ▶ If Gift, Provide Travel Destination _____ _____

Comments: _____

Instructions – Schedule E

Travel Payments, Advances, and Reimbursements

Travel payments reportable on Schedule E include advances and reimbursements for travel and related expenses, including lodging and meals.

Gifts of travel may be subject to the gift limit. In addition, certain travel payments are reportable gifts, but are not subject to the gift limit. To avoid possible misinterpretation or the perception that you have received a gift in excess of the gift limit, you may wish to provide a specific description of the purpose of your travel. (See the FPPC fact sheet entitled "Limitations and Restrictions on Gifts, Honoraria, Travel, and Loans" to read about travel payments under section 89506(a).)

You are not required to disclose:

- Travel payments received from any state, local, or federal government agency for which you provided services equal or greater in value than the payments received, such as reimbursement for travel on agency business from your government agency employer.
- A payment for travel from another local, state, or federal government agency and related per diem expenses when the travel is for education, training or other inter-agency programs or purposes.
- Travel payments received from your employer in the normal course of your employment that are included in the income reported on Schedule C.
- A travel payment that was received from a nonprofit entity exempt from taxation under Internal Revenue Code Section 501(c)(3) for which you provided equal or greater consideration, such as reimbursement for travel on business for a 501(c)(3) organization for which you are a board member.

Note: Certain travel payments may not be reportable if reported via email on Form 801 by your agency.

To Complete Schedule E:

- Disclose the full name (not an acronym) and address of the source of the travel payment.
- Identify the business activity if the source is a business entity.
- Check the box to identify the payment as a gift or income, report the amount, and disclose the date(s).
 - **Travel payments are gifts** if you did not provide services that were equal to or greater in value than the payments received. You must disclose gifts totaling \$500 or more from a single source during the period covered by the statement.

When reporting travel payments that are gifts, you must provide a description of the gift, the **date(s)** received, and the **travel destination**.

- **Travel payments are income** if you provided services that were equal to or greater in value than the

payments received. You must disclose income totaling \$500 or more from a single source during the period covered by the statement. You have the burden of proving the payments are income rather than gifts. When reporting travel payments as income, you must describe the services you provided in exchange for the payment. You are not required to disclose the date(s) for travel payments that are income.

Example:

City council member MaryClaire Chandler is the chair of a 501(c)(6) trade association, and the association pays for MaryClaire's travel to attend its meetings. Because MaryClaire is deemed to be providing equal or greater consideration for the travel payment by virtue of serving on the board, this payment may be reported as income. Payments for MaryClaire to attend other events for which they are not providing services are likely considered gifts.

Note that the same payment from a 501(c)(3) would NOT be reportable.

Example:

Mayor Kim travels to China on a trip organized by China Silicon Valley Business Development, a California nonprofit, 501(c)(6) organization. The Chengdu Municipal People's Government pays for Mayor Kim's airfare and travel costs, as well as meals and lodging during the trip. The trip's agenda shows that the trip's purpose is to promote job creation and economic activity in China and in Silicon Valley, so the trip is reasonably related to a governmental purpose.

Thus, Mayor Kim must report the gift of travel, but the gift is exempt from the gift limit. In this case, the travel payments are not subject to the gift limit because the source is a foreign government and because the travel is reasonably related to a governmental purpose. (Section 89506(a)(2).) Note that Mayor Kim could be disqualified from participating in or making decisions about The Chengdu Municipal People's Government for 12 months. Also note that if China Silicon Valley Business Development (a 501(c)(6) organization) paid for the travel costs rather than the governmental organization, the payments would be subject to the gift limits. (See the FPPC fact sheet, Limitations and Restrictions on Gifts, Honoraria, Travel and Loans, at www.fppc.ca.gov.)

▶ NAME OF SOURCE (Not an Acronym)	
Health Services Trade Association	
ADDRESS (Business Address Acceptable)	
1230 K Street, Suite 610	
CITY AND STATE	
Sacramento, CA	
☐ 501 (c)(3) or DESCRIBE BUSINESS ACTIVITY, IF ANY, OF SOURCE	
Association of Healthcare Workers	
DATE(S):	AMT: \$ 550.00
(If gift)	
▶ MUST CHECK ONE: ☐ Gift -or- ☒ Income	
☐ Made a Speech/Participated in a Panel	
☒ Other - Provide Description Travel reimbursement for board meeting.	
▶ If Gift, Provide Travel Destination	

▶ NAME OF SOURCE (Not an Acronym)	
Chengdu Municipal People's Government	
ADDRESS (Business Address Acceptable)	
2 Caoshi St, CaoShiJie, Qingyang Qu, Chengdu Shi,	
CITY AND STATE	
Sichuan Sheng, China, 610000	
☐ 501 (c)(3) or DESCRIBE BUSINESS ACTIVITY, IF ANY, OF SOURCE	
DATE(S):	AMT: \$ 3,874.38
(If gift)	
▶ MUST CHECK ONE: ☒ Gift -or- ☐ Income	
☐ Made a Speech/Participated in a Panel	
☒ Other - Provide Description Travel reimbursement for trip to China.	
▶ If Gift, Provide Travel Destination	
Sichuan Sheng, China	

Restrictions and Prohibitions

The Political Reform Act (Gov. Code Sections 81000-91014) requires most state and local government officials and employees to publicly disclose their economic interests including personal assets and income. The Act's conflict of interest provisions also disqualify a public official from taking part in a governmental decision if it is reasonably foreseeable that the decision will have a material financial effect on these economic interests as well as the official's personal finances and those of immediate family. (Gov. Code Sections 87100 and 87103.) The Fair Political Practices Commission (FPPC) is the state agency responsible for issuing the attached Statement of Economic Interests, Form 700, and for interpreting the Act's provisions.

Gift Prohibition

Gifts received by most state and local officials, employees, and candidates are subject to a limit. In 2025-2026, the gift limit increased to \$630 from a single source during a calendar year. The gift limit in calendar year 2024 was \$590.

Additionally, state officials, state candidates, and certain state employees are subject to a \$10 limit per calendar month on gifts from lobbyists and lobbying firms registered with the Secretary of State. See Reference Pamphlet, page 11.

State and local officials and employees should check with their agency to determine if other restrictions apply.

Disqualification

Public officials are, under certain circumstances, required to disqualify themselves from making, participating in, or attempting to influence governmental decisions that will affect their economic interests. This may include interests they are not required to disclose. For example, a personal residence is often not reportable, but may be grounds for disqualification. Specific disqualification requirements apply to 87200 filers (e.g., city councilmembers, members of boards of supervisors, planning commissioners, etc.). These officials must publicly identify the economic interest that creates a conflict of interest and leave the room before a discussion or vote takes place at a public meeting. For more information, consult Government Code Section 87105, Regulation 18707, and the Guide to Recognizing Conflicts of Interest page at www.fppc.ca.gov.

Honorarium Ban

Most state and local officials, employees, and candidates are prohibited from accepting an honorarium for any speech given, article published, or attendance at a conference, convention, meeting, or like gathering. (See Reference Pamphlet, page 11.)

Loan Restrictions

Certain state and local officials are subject to restrictions on loans. (See Reference Pamphlet, page 15.)

Post-Governmental Employment

There are restrictions on representing clients or employers before former agencies. The provisions apply to elected state officials, most state employees, local elected officials, county chief administrative officers, city managers, including the chief administrator of a city, and general managers or chief administrators of local special districts and JPAs. The FPPC website has fact sheets explaining the provisions.

Late Filing

The filing officer who retains originally-signed or electronically filed statements of economic interests may impose on an individual a fine for any statement that is filed late. The fine is \$10 per day up to a maximum of \$100. Late filing penalties may be reduced or waived under certain circumstances.

Persons who fail to timely file their Form 700 may be referred to the FPPC's Enforcement Division (and, in some cases, to the Attorney General or district attorney) for investigation and possible prosecution. In addition to the late filing penalties, a fine of up to \$5,000 per violation may be imposed.

For assistance concerning reporting, prohibitions, and restrictions under the Act:

- Email questions to advice@fppc.ca.gov.
- Call the FPPC toll-free at (866) 275-3772.

Form 700 is a Public Document Public Access Must Be Provided

Statements of Economic Interests are public documents. The filing officer must permit any member of the public to inspect and receive a copy of any statement.

- Statements must be available as soon as possible during the agency's regular business hours, but in any event not later than the second business day after the statement is received. Access to the Form 700 is not subject to the Public Records Act procedures.
- No conditions may be placed on persons seeking access to the forms.
- No information or identification may be required from persons seeking access.
- Reproduction fees of no more than 10 cents per page may be charged.

Questions and Answers

General

- Q. What is the reporting period for disclosing interests on an assuming office statement or a candidate statement?
- A. On an assuming office statement, disclose all reportable investments, interests in real property, and business positions held on the date you assumed office. In addition, you must disclose income (including loans, gifts and travel payments) received during the 12 months prior to the date you assumed office.

On a candidate statement, disclose all reportable investments, interests in real property, and business positions held on the date you file your declaration of candidacy. You must also disclose income (including loans, gifts and travel payments) received during the 12 months prior to the date you file your declaration of candidacy.

- Q. I hold two other board positions in addition to my position with the county. Must I file three statements of economic interests?
- A. Yes, three are required. However, you may instead complete an expanded statement listing the county and the two boards on the Cover Page or an attachment as the agencies for which you will be filing. Disclose all reportable economic interests in all three jurisdictions on the expanded statement. File the expanded statement for your primary position providing an original “wet” signature unless filed with a secure electronic signature. (See page 4 above.) File copies of the expanded statement with the other two agencies as required by Regulation 18723.1(c). Remember to complete separate statements for positions that you leave or assume during the year.
- Q. I am a department head who recently began acting as city manager. Should I file as the city manager?
- A. Yes. File an assuming office statement as city manager. Persons serving as “acting,” “interim,” or “alternate” must file as if they hold the position because they are or may be performing the duties of the position.

- Q. My spouse and I are currently separated and in the process of obtaining a divorce. Must I still report my spouse’s income, investments, and interests in real property?
- A. Yes. A public official must continue to report a spouse’s economic interests until such time as dissolution of marriage proceedings is final. However, if a separate property agreement has been reached prior to that time, your estranged spouse’s income may not have to be reported. Contact the FPPC for more information.
- Q. As a designated employee, I left one state agency to work for another state agency. Must I file a leaving office statement?
- A. Yes. You may also need to file an assuming office statement for the new agency.

Investment Disclosure

- Q. I have an investment interest in shares of stock in a company that does not have an office in my jurisdiction. Must I still disclose my investment interest in this company?
- A. Probably. The definition of “doing business in the jurisdiction” is not limited to whether the business has an office or physical location in your jurisdiction. (See Reference Pamphlet, page 14.)
- Q. My spouse and I have a living trust. The trust holds rental property in my jurisdiction, our primary residence, and investments in diversified mutual funds. I have full disclosure. How is this trust disclosed?
- A. Disclose the name of the trust, the rental property and its income on Schedule A-2. Your primary residence and investments in diversified mutual funds registered with the SEC are not reportable.
- Q. I am required to report all investments. I have an IRA that contains stocks through an account managed by a brokerage firm. Must I disclose these stocks even though they are held in an IRA and I did not decide which stocks to purchase?
- A. Yes. Disclose on Schedule A-1 or A-2 any stock worth \$2,000 or more in a business entity located in or doing business in your jurisdiction.

Questions and Answers

Continued

- Q. The value of my stock changed during the reporting period. How do I report the value of the stock?
- A. You are required to report the highest value that the stock reached during the reporting period. You may use your monthly statements to determine the highest value. You may also use the entity's website to determine the highest value. You are encouraged to keep a record of where you found the reported value. Note that for an assuming office statement, you must report the value of the stock on the date you assumed office.
- Q. I am the sole owner of my business, an S-Corporation. I believe that the nature of the business is such that it cannot be said to have any "fair market value" because it has no assets. I operate the corporation under an agreement with a large insurance company. My contract does not have resale value because of its nature as a personal services contract. Must I report the fair market value for my business on Schedule A-2 of the Form 700?
- A. Yes. Even if there are no *tangible* assets, intangible assets, such as relationships with companies and clients are commonly sold to qualified professionals. The "fair market value" is often quantified for other purposes, such as marital dissolutions or estate planning. In addition, the IRS presumes that "personal services corporations" have a fair market value. A professional "book of business" and the associated goodwill that generates income are not without a determinable value. The Form 700 does not require a precise fair market value; it is only necessary to check a box indicating the broad range within which the value falls.
- Q. I own stock in IBM and must report this investment on Schedule A-1. I initially purchased this stock in the early 1990s; however, I am constantly buying and selling shares. Must I note these dates in the "Acquired" and "Disposed" fields?
- A. No. You must only report dates in the "Acquired" or "Disposed" fields when, during the reporting period, you initially purchase a reportable investment worth \$2,000 or more or when you dispose of the entire investment. You are not required to track the partial trading of an investment.
- Q. On last year's filing I reported stock in Encoe valued at \$2,000 - \$10,000. Late last year the value of this stock fell below and remains at less than \$2,000. How should this be reported on this year's statement?
- A. You are not required to report an investment if the value was less than \$2,000 during the **entire** reporting period. However, because a disposed date is not required for stocks that fall below \$2,000, you may want to report the stock and note in the "comments" section that the value fell below \$2,000. This would be for informational purposes only; it is not a requirement.
- Q. We have a Section 529 account set up to save money for our son's college education. Is this reportable?
- A. If the Section 529 account contains reportable interests (e.g., common stock valued at \$2,000 or more), those interests are reportable (not the actual Section 529 account). If the account contains solely mutual funds, then nothing is reported.

Income Disclosure

- Q. I reported a business entity on Schedule A-2. Clients of my business are located in several states. Must I report all clients from whom my pro rata share of income is \$10,000 or more on Schedule A-2, Part 3?
- A. No, only the clients located in or doing business on a regular basis in your jurisdiction must be disclosed.
- Q. I believe I am not required to disclose the names of clients from whom my pro rata share of income is \$10,000 or more on Schedule A-2 because of their right to privacy. Is there an exception for reporting clients' names?
- A. Regulation 18740 provides a procedure for requesting an exemption to allow a client's name not to be disclosed if disclosure of the name would violate a legally recognized privilege under California or Federal law. This regulation may be obtained from our website at www.fppc.ca.gov. (See Reference Pamphlet, page 15.)

Questions and Answers Continued

Q. I am sole owner of a private law practice that is not reportable based on my limited disclosure category. However, some of the sources of income to my law practice are from reportable sources. Do I have to disclose this income?

A. Yes, even though the law practice is not reportable, reportable sources of income to the law practice of \$10,000 or more must be disclosed. This information would be disclosed on Schedule C with a note in the "comments" section indicating that the business entity is not a reportable investment. The note would be for informational purposes only; it is not a requirement.

Q. I am the sole owner of my business. Where do I disclose my income - on Schedule A-2 or Schedule C?

A. Sources of income to a business in which you have an ownership interest of 10% or greater are disclosed on Schedule A-2. (See Reference Pamphlet, page 9.)

Q. My spouse is a partner in a four-person firm where all of their business is based on their own billings and collections from various clients. How do I report my community property interest in this business and the income generated in this manner?

A. If your spouse's investment in the firm is 10% or greater, disclose 100% of your spouse's share of the business on Schedule A-2, Part 1 and 50% of your spouse's income on Schedule A-2, Parts 2 and 3. For example, a client of your spouse's must be a source of at least \$20,000 during the reporting period before the client's name is reported.

Q. How do I disclose my spouse's or registered domestic partner's salary?

A. Report the name of the employer as a source of income on Schedule C.

Q. I am a doctor. For purposes of reporting \$10,000 sources of income on Schedule A-2, Part 3, are the patients or their insurance carriers considered sources of income?

A. If your patients exercise sufficient control by selecting you instead of other doctors, then your patients, rather than their insurance carriers, are sources of income to you. (See Reference Pamphlet, page 15.)

Q. I received a loan from my grandfather to purchase my home. Is this loan reportable?

A. No. Loans received from family members are not reportable.

Q. Many years ago, I loaned my parents several thousand dollars, which they paid back this year. Do I need to report this loan repayment on my Form 700?

A. No. Payments received on a loan made to a family member are not reportable.

Real Property Disclosure

Q. During this reporting period we switched our principal place of residence into a rental. I have full disclosure and the property is located in my agency's jurisdiction, so it is now reportable. Because I have not reported this property before, do I need to show an "acquired" date?

A. No, you are not required to show an "acquired" date because you previously owned the property. However, you may want to note in the "comments" section that the property was not previously reported because it was used exclusively as your residence. This would be for informational purposes only; it is not a requirement.

Q. I am a city manager, and I own a rental property located in an adjacent city, but one mile from the city limit. Do I need to report this property interest?

A. Yes. You are required to report this property because it is located within 2 miles of the boundaries of the city you manage.

Q. Must I report a home that I own as a personal residence for my daughter?

A. You are not required to disclose a home used as a personal residence for a family member unless you receive income from it, such as rental income.

Q. I am a co-signer on a loan for a rental property owned by a friend. Since I am listed on the deed of trust, do I need to report my friend's property as an interest in real property on my Form 700?

A. No. Simply being a co-signer on a loan for property does not create a reportable interest in that real property.

Questions and Answers Continued

Gift Disclosure

- Q. If I received a reportable gift of two tickets to a concert valued at \$100 each, but gave the tickets to a friend because I could not attend the concert, do I have any reporting obligations?
- A. Yes. Since you accepted the gift and exercised discretion and control of the use of the tickets, you must disclose the gift on Schedule D.
- Q. Julia and Jared Benson, a married couple, want to give a piece of artwork to a county supervisor. Is each spouse considered a separate source for purposes of the gift limit and disclosure?
- A. Yes, each spouse may make a gift valued at the gift limit during a calendar year. For example, during 2025 the gift limit was \$630, so the Bensons may have given the supervisor artwork valued at no more than \$1,260. The supervisor must identify Jared and Julia Benson as the sources of the gift.
- Q. I am a Form 700 filer with full disclosure. Our agency holds a holiday raffle to raise funds for a local charity. I bought \$10 worth of raffle tickets and won a gift basket valued at \$120. The gift basket was donated by Doug Brewer, a citizen in our city. At the same event, I bought raffle tickets for, and won a quilt valued at \$70. The quilt was donated by a coworker. Are these reportable gifts?
- A. Because the gift basket was donated by an outside source (not an agency employee), you have received a reportable gift valued at \$110 (the value of the basket less the consideration paid). The source of the gift is Doug Brewer and the agency is disclosed as the intermediary. Because the quilt was donated by an employee of your agency, it is not a reportable gift.
- Q. My agency is responsible for disbursing grants. An applicant (501(c)(3) organization) met with agency employees to present its application. At this meeting, the applicant provided food and beverages. Would the food and beverages be considered gifts to the employees? These employees are designated in our agency's conflict of interest code and the applicant is a reportable source of income under the code.
- A. Yes. If the value of the food and beverages consumed by any one filer, plus any other gifts received from the same source during the reporting period total \$50 or more, the food and beverages would be reported using the fair market value and would be subject to the gift limit.
- Q. I received free admission to an educational conference related to my official duties. Part of the conference fees included a round of golf. Is the value of the golf considered informational material?
- A. No. The value of personal benefits, such as golf, attendance at a concert, or sporting event, are gifts subject to reporting and limits.

Agenda Item 4

AGENDA STAFF REPORT

MEETING DATE: March 18, 2026

CONTACT PERSON(S): Louis McClure (714) 834-5999, Ray Diaz (714) 834-3300

SUBJECT: Approve Amendment Number 1 to Agreement with Mobius Planning, LLC

PRIOR BOARD ACTION: N/A

APPLICABLE STRATEGIC PLAN GOAL(S): Goal 4

RECOMMENDED ACTION(S):

1. Approve Amendment Number 1 to the Agreement with Mobius Planning, LLC and authorize Trust Manager to execute the Amendment.

BACKGROUND INFORMATION:

On December 23, 2025, the Orange County Housing Finance Trust (OCHFT) executed a short-term agreement (Agreement) with Mobius Planning, LLC to provide Notice of Funding Availability (NOFA) administration support until a Request for Proposals (RFP) process could be completed to select a firm to provide these services. The Agreement was executed by the Trust Manager as provided for in the OCHFT procurement policy for contracts under \$10,000, and the term is from January 1, 2026, through April 30, 2026.

On January 14, 2026, an RFP was launched for the purpose of selecting a firm to provide NOFA support services. The RFP closed on February 13, 2026, and a review panel has been convened to rank the proposals. Due to the time required to review the proposals and negotiate a contract, it is not expected that a new contract could be submitted to the OCHFT Board for consideration prior to the expiration of the Agreement.

Approval of the attached Amendment Number 1 will extend the Agreement through May 31, 2026, providing uninterrupted services until the RFP process has been completed, and a contract can be considered by the OCHFT Board at their May meeting. The compensation will remain unchanged at \$2,499.75 flat fee per month.

ATTACHMENTS:

Attachment A – Amendment Number 1 to Agreement with Mobius Planning, LLC

Attachment B – Current Agreement with Mobius Planning, LLC

**AMENDMENT NUMBER 1 TO
AGREEMENT BETWEEN
ORANGE COUNTY HOUSING FINANCE TRUST
AND MOBIUS PLANNING, LLC. FOR ADMINISTRATIVE PLANNING
MA-012-26010731**

This Amendment Number 1 (“Amendment 1”) to Agreement MA-012-260731 for Consulting Services, (hereinafter referred to as “Contract”), is made and entered into as of the date fully executed by and between the Orange County Housing Finance Trust, a California public agency formed pursuant to California Government Code section 6500 et. seq., with a place of business at 400 West Civic Center Drive, Santa Ana, CA 92701 hereinafter referred to as “OCHFT” or “Trust”), and Mobius Planning LLC, with a place of business at 1030 S. Country Glen Way Anaheim, CA 92806 (hereinafter referred to as “Contractor”), with OCHFT and Contractor sometimes individually referred to as “Party” or collectively referred to as “Parties”.

RECITALS

WHEREAS, OCHFT entered into the Contract with Contractor for Administrative Planning Services effective from January 1, 2026 to April 30, 2026; and

WHEREAS, OCHFT entered into Contract via the Trust Manager’s delegated authority under the OCHFT Procurement Policy which has a limit of ten-thousand dollars (\$10,000); and

WHEREAS, OCHFT is in the process of procuring, via a Request for Proposals (“RFP”), for a permanent contractor to provide Administrative Planning Services; and

WHEREAS, the RFP may not be completed prior to the Contract’s term ending on April 30, 2026; and

WHEREAS, the Trust Board and Trust Manager require continuous Consulting Services until a new permanent contractor is found; and

WHEREAS, the Trust and Contractor agree to extend the term of Contract to ensure continued services until the RFP is complete; and

WHEREAS, due to the extension, the Trust and Contractor wish to increase the not-to-exceed amount listed in Attachment B; and

WHEREAS, the Trust desires to update the Trust address on the Notice section.

NOW, THEREFORE, in consideration of the foregoing recitals and other good and valuable consideration, the Parties mutually agree to amend the Contract as follows:

I. Amendments

A. Paragraph 2 (Term of Contract) of Section II (Additional Terms and Conditions) of the Contract is deleted in its entirety and replaced with the following:

“2. Term of Contract: This Contract shall commence on January 1, 2026 and continue until May 31, 2026, unless otherwise terminated by either party.”

- B.** Paragraph 17 (Notices) of Section II (Additional Terms and Conditions) of the Contract is amended to include OCHFT's new address as follows:

“For OCHFT: Orange County Housing Finance Trust
 ATTN: OCHFT Manager
 400 West Civic Center Drive, Fifth Floor
 Santa Ana, CA 92701

- C.** Attachment B of the Contract is deleted in its entirety and replaced with Attachment B of this Amendment 1.

- II.** Except as expressly amended in this Amendment 1, all other provisions of the Contract shall remain in full force and effect.

Signature Page

IN WITNESS WHEREOF, the Parties hereto certify that they have read and understand all the terms and conditions contained herein and have hereby caused this Contract to be executed.

Mobius Planning, LLC

By: _____

Name: Grant Henninger

Title: Founding Principle

Dated: March 12, 2026

*For Subrecipients that are corporations, signature requirements are as follows: 1) One signature by the Chairman of the Board, the President or any Vice President; and 2) One signature by the secretary, any Assistant secretary, the Chief Financial Officer or an Assistant Treasurer.

For Subrecipients that are not corporations, the person who has authority to bind the Subrecipient to a contract, must sign on one of the lines above.

ORANGE COUNTY HOUSING FINANCE TRUST

By: _____ Dated: _____

Louis McClure, Trust Manager
Orange County Housing Finance Trust

APPROVED AS TO FORM

TRUST COUNSEL

DocuSigned by:

By: _____

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TRUST COUNSEL

Dated: 3/12/2026

**ATTACHMENT B
COMPENSATION AND PRICING
AMENDMENT 1**

In consideration of the performance of these services, Consultant will be compensated in an amount not to exceed \$12,498.75 for the duration of the contract or \$2499.75 monthly. This fee is based upon the scope of services above.

CONTRACT TERM: This bridge contract shall not exceed six (6) months in duration from date of execution and may be terminated by Trust or Consultant with thirty(30) days prior written notice.

PAYMENT TERMS: Invoices are to be submitted in arrears, monthly, to the Trust Manager as directed in the Contract. Consultant shall reference Contract number on invoice. Payment will be net-30 days after receipt of an invoice in a format acceptable to the Trust and verified and approved by the Trust Manager and subject to routine processing requirements. The responsibility for providing an acceptable invoice rests with Consultant.

Billing shall cover services and/or goods not previously invoiced. Consultant shall reimburse Trust for any monies paid to Consultant for goods or services not provided or when goods or services do not meet Contract requirements.

Payments made by Trust shall not preclude the right of Trust from thereafter disputing any items or services involved or billed

PAYMENT – INVOICING INSTRUCTIONS: Consultant will provide an invoice on the Consultant's letterhead for services rendered. Each invoice will have a number and will include the following information:

- A. Consultant's name and address
- B. Consultant's remittance address, if different from A. above.
- C. Consultant's Taxpayer ID Number
- D. Delivery/service address
- E. Contract Number MA-012-26010731
- F. Date of invoice.
- G. Product/service description, quantity, and prices
- H. Sales tax, if applicable
- I. Freight/delivery charges, if applicable
- J. Total.

Invoice and support documentation are to be forwarded to:

County Executive Office/Public Finance

Attn: Louis McClure

400 W. Civic Center Dr.

Santa Ana, CA 92701

Email: Louis.McClure@ceo.oc.gov

**AGREEMENT BETWEEN
ORANGE COUNTY HOUSING FINANCE TRUST
AND MOBIUS PLANNING, LLC. FOR ADMINISTRATIVE PLANNING
MA-012-26010731**

This Agreement for Consulting Services, (hereinafter referred to as “Contract”), is made and entered into as of the date fully executed by and between the Orange County Housing Finance Trust, a California public agency formed pursuant to California Government Code section 6500 et. seq., with a place of business at 1 League #62335, Irvine CA 92602; (hereinafter referred to as “OCHFT” or “Trust”), and Mobius Planning LLC, with a place of business at 1030 S. Country Glen Way Anaheim, CA 92806 (hereinafter referred to as “Contractor”), with OCHFT and Contractor sometimes individually referred to as “Party” or collectively referred to as “Parties”.

ATTACHMENTS

This Contract is comprised of this document and the following Attachments, which are incorporated by reference into this Contract as if fully set forth:

Attachment A – Scope of Work & Compensation

Attachment B- Compensation & Pricing

RECITALS

WHEREAS, OCHFT desires to enter into a Contract with Contractor for Administrative Planning Services, as more fully described in Attachment A – Scope of Work; and

WHEREAS, Contractor is willing to provide the services as specified in Attachment A, in accordance with the Terms and Conditions of this Contract; and

WHEREAS, OCHFT agrees to pay Contractor the fees as further set forth in Compensation & Pricing attached hereto as Attachment B and incorporated herein;

NOW, THEREFORE, the Parties mutually agree as follows:

ARTICLES

I. General Terms and Conditions:

- A. Governing Law and Venue:** This Contract has been negotiated and executed in the state of California and shall be governed by and construed under the laws of the state of California. In the event of any legal action to enforce or interpret this Contract, the sole and exclusive venue shall be a court of competent jurisdiction located in Orange County, California, and the parties hereto agree to and do hereby submit to the jurisdiction of such court, notwithstanding Code of Civil Procedure Section 394. Furthermore, the parties specifically agree to waive any and all rights to request that an action be transferred for trial to another county.
- B. Entire Contract:** This Contract, when accepted by the Contractor either in writing or by the shipment of any article or other commencement of performance hereunder, contains the entire Contract between the parties with respect to the matters herein, and there are no restrictions, promises, warranties or undertakings other than those set forth herein or referred to herein. No exceptions, alternatives, substitutes or revisions are valid or binding on OCHFT unless authorized by OCHFT in writing. Electronic acceptance of any additional terms, conditions or supplemental Contracts by any OCHFT

employee or agent, including but not limited to installers of software, shall not be valid or binding on OCHFT unless accepted in writing by OCHFT Chair or his/her designee, hereinafter "Purchasing Agent."

- C. **Amendments:** No alteration or variation of the terms of this Contract shall be valid unless made in writing and signed by the parties; no oral understanding or agreement not incorporated herein shall be binding on either of the parties; and no exceptions, alternatives, substitutes or revisions are valid or binding on OCHFT unless authorized by OCHFT in writing.
- D. **Taxes:** Unless otherwise provided herein or by law, price quoted does not include California state sales or use tax.
- E. **Delivery:** Time of delivery of services is of the essence in this Contract. OCHFT reserves the right to refuse any services and to cancel all or any part of the services that do not conform to the prescribed statement of work. Delivery shall not be deemed to be complete until all services have actually been received and accepted in writing by OCHFT.
- F. **Acceptance/Payment:** Unless otherwise agreed to in writing by the OCHFT, 1) acceptance shall not be deemed complete unless in writing and until all the services have actually been received to the satisfaction of OCHFT, and 2) payment shall be made in arrears after satisfactory acceptance and in accordance with Attachment A.
- G. **Warranty:** Contractor expressly warrants that the goods/services covered by this Contract are fit for the particular purpose for which they are intended. Acceptance of this order shall constitute an agreement upon Contractor's part to indemnify, defend and hold OCHFT and its indemnities as identified in paragraph "Z" below, and as more fully described in paragraph "Z", harmless from liability, loss, damage and expense, including reasonable counsel fees, incurred or sustained by OCHFT by reason of the failure of the services to conform to such warranties, faulty work performance, negligent or unlawful acts, and non-compliance with any applicable state or federal codes, ordinances, orders, or statutes, including the Occupational Safety and Health Act (OSHA) and the California Industrial Safety Act. Such remedies shall be in addition to any other remedies provided by law.
- H. **Patent/Copyright Materials/Proprietary Infringement:** Intentionally Omitted
- I. **Assignment:** The terms, covenants, and conditions contained herein shall apply to and bind the heirs, successors, executors, administrators and assigns of the parties. Furthermore, neither the performance of this Contract nor any portion thereof may be assigned or sub-contracted by Contractor without the express written consent of OCHFT. Any attempt by Contractor to assign or sub-contract the performance or any portion thereof of this Contract without the express written consent of OCHFT shall be invalid and shall constitute a breach of this Contract.
- J. **Non-Discrimination:** In the performance of this Contract, Contractor agrees that it will comply with the requirements of Section 1735 of the California Labor Code and not engage nor permit any subcontractors to engage in discrimination in employment of persons because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, marital status, or sex of such persons. Contractor acknowledges that a violation of this provision shall subject Contractor to all the penalties pursuant to Section 1741 of the California Labor Code.
- K. **Termination:** In addition to any other remedies or rights it may have by law, OCHFT has the right to terminate this Contract without penalty for cause or after thirty (30) days' written notice without cause, unless otherwise specified. Cause shall be defined as any breach of contract, any misrepresentation or fraud on the part of the Contractor. Exercise by OCHFT of its right to terminate the Contract shall relieve OCHFT of all further obligations.
- L. **Consent to Breach Not Waiver:** No term or provision of this Contract shall be deemed waived and no breach excused, unless such waiver or consent shall be in writing and signed by the party claimed to have waived or consented. Any consent by any party to, or waiver of, a breach by the other, whether express or implied, shall not constitute consent to, waiver of, or excuse for any other different or subsequent breach.

- M. Independent Contractor:** Contractor shall be considered an independent contractor and neither Contractor, its employees nor anyone working under Contractor shall be considered an agent or an employee of OCHFT. Neither Contractor, its employees nor anyone working under Contractor shall qualify for workers' compensation or other fringe benefits of any kind through OCHFT.
- N. Performance:** Contractor shall warrant all work under this Contract, taking necessary steps and precautions to perform the work to OCHFT's satisfaction. Contractor shall be responsible for the professional quality, technical assurance, timely completion and coordination of all documentation and other services furnished by the Contractor under this Contract. Contractor shall perform all work diligently, carefully, and in a good and workmanlike manner; shall furnish all necessary labor, supervision, machinery, equipment, materials, and supplies, shall at its sole expense obtain and maintain all permits and licenses required by public authorities, including those of OCHFT required in its governmental capacity, in connection with performance of the work. If permitted to subcontract, Contractor shall be fully responsible for all work performed by subcontractors.
- O. Insurance Provision:** Prior to the provision of services under this Contract, the Contractor agrees to purchase all required insurance at Contractor's expense, including all endorsements required herein, necessary to satisfy the OCHFT that the insurance provisions of this Contract have been complied with. Contractor agrees to keep such insurance coverage, Certificates of Insurance, and endorsements on deposit with the OCHFT during the entire term of this Contract. In addition, all subcontractors performing work on behalf of Contractor pursuant to this Contract shall obtain insurance subject to the same terms and conditions as set forth herein for Contractor.

Contractor shall ensure that all subcontractors performing work on behalf of Contractor pursuant to this Contract shall be covered under Contractor's insurance as an Additional Insured or maintain insurance subject to the same terms and conditions as set forth herein for Contractor. Contractor shall not allow subcontractors to work if subcontractors have less than the level of coverage required by OCHFT from Contractor under this Contract. It is the obligation of Contractor to provide notice of the insurance requirements to every subcontractor and to receive proof of insurance prior to allowing any subcontractor to begin work. Such proof of insurance must be maintained by Contractor through the entirety of this Contract for inspection by OCHFT representative(s) at any reasonable time.

All self-insured retentions (SIRs) shall be clearly stated on the Certificate of Insurance. Any self-insured retention (SIR) in an amount in excess of Fifty Thousand Dollars (\$50,000) shall specifically be approved by the OCHFT's Risk Manager, or designee, upon review of Contractor's current audited financial report. If Contractor's SIR is approved, Contractor, in addition to, and without limitation of, any other indemnity provision(s) in this Contract, agrees to all of the following:

- 1) In addition to the duty to indemnify and hold the OCHFT harmless against any and all liability, claim, demand or suit resulting from Contractor's, its agents, employee's or subcontractor's performance of this Contract, Contractor shall defend the OCHFT at its sole cost and expense with counsel approved by Board of Supervisors against same; and
- 2) Contractor's duty to defend, as stated above, shall be absolute and irrespective of any duty to indemnify or hold harmless; and
- 3) The provisions of California Civil Code Section 2860 shall apply to any and all actions to which the duty to defend stated above applies, and the Contractor's SIR provision shall be interpreted as though the Contractor was an insurer and the OCHFT was the insured.

If the Contractor fails to maintain insurance acceptable to the OCHFT for the full term of this Contract, the OCHFT may terminate this Contract.

Qualified Insurer

The policy or policies of insurance must be issued by an insurer with a minimum rating of A- (Secure A.M. Best's Rating) and VIII (Financial Size Category as determined by the most current edition of the

Best's Key Rating Guide/Property-Casualty/United States or ambest.com). It is preferred, but not mandatory, that the insurer be licensed to do business in the state of California (California Admitted Carrier).

If the insurance carrier does not have an A.M. Best Rating of A-/VIII, the CEO/Office of Risk Management retains the right to approve or reject a carrier after a review of the company's performance and financial ratings.

The policy or policies of insurance maintained by the Contractor shall provide the minimum limits and coverage as set forth below:

Coverage	Minimum Limits
Commercial General Liability	\$1,000,000 per occurrence \$2,000,000 aggregate
Automobile Liability including coverage for non-owned and hired vehicles	\$1,000,000 per occurrence
Workers' Compensation	Statutory
Employers Liability Insurance	\$1,000,000 per occurrence
Professional Liability Insurance	\$1,000,000 per claims-made \$1,000,000 aggregate

Required Coverage Forms

The Commercial General Liability coverage shall be written on Insurance Services Office (ISO) form CG 00 01, or a substitute form providing liability coverage at least as broad.

The Business Auto Liability coverage shall be written on ISO form CA 00 01, CA 00 05, CA 0012, CA 00 20, or a substitute form providing coverage at least as broad.

Required Endorsements

The Commercial General Liability policy shall contain the following endorsements, which shall accompany the Certificate of Insurance:

1. An Additional Insured endorsement using ISO form CG 20 26 04 13 or a form at least as broad naming the ***Orange County Housing Finance Trust its elected and appointed officials, officers, agents and employees*** as Additional Insureds, or provide blanket coverage, which will state ***AS REQUIRED BY WRITTEN CONTRACT.***
2. A primary non-contributing endorsement using ISO form CG 20 01 04 13, or a form at least as broad evidencing that the Contractor's insurance is primary and any insurance or self-insurance maintained by the OCHFT shall be excess and non-contributing.

The Workers' Compensation policy shall contain a waiver of subrogation endorsement waiving all rights of subrogation against the ***Orange County Housing Finance Trust, its elected and appointed officials, officers, employees and agents***, or provide blanket coverage, which will state ***AS REQUIRED BY WRITTEN CONTRACT.***

All insurance policies required by this Contract shall waive all rights of subrogation against the OCHFT, its elected and appointed officials, officers, employees and agents when acting within the scope of their appointment or employment.

Contractor shall notify OCHFT in writing within thirty (30) days of any policy cancellation and ten (10) days for non-payment of premium and provide a copy of the cancellation notice to OCHFT. Failure to provide written notice of cancellation may constitute a material breach of the Contract, upon which the OCHFT may suspend or terminate this Contract.

If Contractor's Professional Liability is "Claims-Made" policy, Contractor shall agree to maintain coverage for two (2) years following the completion of the Contract.

The Commercial General Liability policy shall contain a severability of interests clause also known as a "separation of insureds" clause (standard in the ISO CG 0001 policy).

Insurance certificates should be forwarded to the agency/department address listed on this Contract.

If the Contractor fails to provide the insurance certificates and endorsements within seven (7) days of notification by CEO/Purchasing or the agency/department purchasing division, award may be made to the next qualified Offeror.

OCHFT expressly retains the right to require Contractor to increase or decrease insurance of any of the above insurance types throughout the term of this Contract. Any increase or decrease in insurance will be as deemed by OCHFT Risk Manager as appropriate to adequately protect OCHFT.

OCHFT shall notify Contractor in writing of changes in the insurance requirements. If Contractor does not deposit copies of acceptable Certificates of Insurance and endorsements with OCHFT incorporating such changes within thirty (30) days of receipt of such notice, this Contract may be in breach without further notice to Contractor, and OCHFT shall be entitled to all legal remedies.

The procuring of such required policy or policies of insurance shall not be construed to limit Contractor's liability hereunder nor to fulfill the indemnification provisions and requirements of this Contract, nor act in any way to reduce the policy coverage and limits available from the insurer.

P. Changes: Contractor shall make no changes in the work or perform any additional work without the OCHFT's specific written approval.

Q. Change of Ownership/Name, Litigation Status, Conflicts with OCHFT Interests: Contractor agrees that if there is a change or transfer in ownership of Contractor's business prior to completion of this Contract, and the OCHFT agrees to an assignment of the Contract, the new owners shall be required under the terms of sale or other instruments of transfer to assume Contractor's duties and obligations contained in this Contract and complete them to the satisfaction of the OCHFT.

OCHFT reserves the right to immediately terminate the Contract in the event the OCHFT determines that the assignee is not qualified or is otherwise unacceptable to the OCHFT for the provision of services under the Contract.

In addition, Contractor has the duty to notify the OCHFT in writing of any change in the Contractor's status with respect to name changes that do not require an assignment of the Contract. The Contractor is also obligated to notify the OCHFT in writing if the Contractor becomes a party to any litigation against the OCHFT, or a party to litigation that may reasonably affect the Contractor's performance under the Contract, as well as any potential conflicts of interest between Contractor and OCHFT that may arise prior to or during the period of Contract performance. While Contractor will be required to provide this information without prompting from the OCHFT any time there is a change in Contractor's name, conflict of interest or litigation status, Contractor must also provide an update to the OCHFT of its status in these areas whenever requested by the OCHFT.

The Contractor shall exercise reasonable care and diligence to prevent any actions or conditions that could result in a conflict with OCHFT interests. In addition to the Contractor, this obligation shall apply to the Contractor's employees, agents, and subcontractors associated with the provision of goods and services provided under this Contract. The Contractor's efforts shall include, but not be limited to establishing

rules and procedures preventing its employees, agents, and subcontractors from providing or offering gifts, entertainment, payments, loans or other considerations which could be deemed to influence or appear to influence OCHFT staff or elected officers in the performance of their duties.

- R. Force Majeure:** Contractor shall not be assessed with liquidated damages or unsatisfactory performance penalties during any delay beyond the time named for the performance of this Contract caused by any act of God, war, civil disorder, employment strike or other cause beyond its reasonable control, provided Contractor gives written notice of the cause of the delay to OCHFT within thirty-six (36) hours of the start of the delay and Contractor avails himself of any available remedies.
- S. Confidentiality:** Contractor agrees to maintain the confidentiality of all OCHFT and OCHFT-related records and information pursuant to all statutory laws relating to privacy and confidentiality that currently exist or exist at any time during the term of this Contract. All such records and information shall be considered confidential and kept confidential by Contractor and Contractor's staff, agents and employees.
- T. Compliance with Laws:** Contractor represents and warrants that services to be provided under this Contract shall fully comply, at Contractor's expense, with all standards, laws, statutes, restrictions, ordinances, requirements, and regulations (collectively "laws"), including, but not limited to those issued by OCHFT in its governmental capacity and all other laws applicable to the services at the time services are provided to and accepted by OCHFT. Contractor acknowledges that OCHFT is relying on Contractor to ensure such compliance, and pursuant to the requirements of paragraph "Z" below, Contractor agrees that it shall defend, indemnify and hold OCHFT and OCHFT Indemnitees harmless from all liability, damages, costs, and expenses arising from or related to a violation of such laws.
- U. Freight (F.O.B. Destination):** Intentionally Omitted
- V. Severability:** If any term, covenant, condition, or provision of this Contract is held by a court of competent jurisdiction to be invalid, void or unenforceable, the remainder of the provisions hereof shall remain in full force and effect and shall in no way be affected, impaired or invalidated thereby.
- W. Attorney Fees:** In any action or proceeding to enforce or interpret any provision of this Contract, each party shall bear their own attorney's fees, costs and expenses.
- X. Interpretation:** This Contract has been negotiated at arm's length and between persons sophisticated and knowledgeable in the matters dealt with in this Contract. In addition, each party has been represented by experienced and knowledgeable independent legal counsel of their own choosing or has knowingly declined to seek such counsel despite being encouraged and given the opportunity to do so. Each party further acknowledges that they have not been influenced to any extent whatsoever in executing this Contract by any other party hereto or by any person representing them, or both. Accordingly, any rule or law (including California Civil Code Section 1654) or legal decision that would require interpretation of any ambiguities in this Contract against the party that has drafted it is not applicable and is waived. The provisions of this Contract shall be interpreted in a reasonable manner to affect the purpose of the parties and this Contract.
- Y. Employee Eligibility Verification:** The Contractor warrants that it fully complies with all Federal and State statutes and regulations regarding the employment of aliens and others and that all its employees performing work under this Contract meet the citizenship or alien status requirement set forth in Federal statutes and regulations. The Contractor shall obtain, from all employees, consultants and subcontractors performing work hereunder, all verification and other documentation of employment eligibility status required by Federal or State statutes and regulations including, but not limited to, the Immigration Reform and Control Act of 1986, 8 U.S.C. §1324 et seq., as they currently exist and as they may be hereafter amended. The Contractor shall retain all such documentation for all covered employee, consultants and subcontractors for the period prescribed by the law. The Contractor shall indemnify, defend with counsel approved in writing by OCHFT, and hold harmless, the OCHFT, its agents, officers, and employees from employer sanctions and any other liability which may be assessed against the Contractor or the OCHFT

or both in connection with any alleged violation of any Federal or State statutes or regulations pertaining to the eligibility for employment of any persons performing work under this Contract.

Z. Indemnification Provisions: Contractor agrees to indemnify, defend with counsel approved in writing by OCHFT, and hold OCHFT, its elected and appointed officials, officers, employees, agents and those special districts and agencies which OCHFT's Board Members acts as the governing Board ("OCHFT Indemnitees") harmless from any claims, demands or liability of any kind or nature, including but not limited to personal injury or property damage, arising from or related to the services, products or other performance provided by Contractor pursuant to this Contract. If judgment is entered against Contractor and OCHFT by a court of competent jurisdiction because of the concurrent active negligence of OCHFT or OCHFT Indemnitees, Contractor and OCHFT agree that liability will be apportioned as determined by the court. Neither party shall request a jury apportionment.

AA. Audits/Inspections: Contractor agrees to permit the OCHFT's Auditor-Controller or the Auditor-Controller's authorized representative (including auditors from a private auditing firm hired by the OCHFT) access during normal working hours to all books, accounts, records, reports, files, financial records, supporting documentation, including payroll and accounts payable/receivable records, and other papers or property of Contractor for the purpose of auditing or inspecting any aspect of performance under this Contract. The inspection and/or audit will be confined to those matters connected with the performance of the Contract including, but not limited to, the costs of administering the Contract. The OCHFT will provide reasonable notice of such an audit or inspection.

The OCHFT reserves the right to audit and verify the Contractor's records before final payment is made.

Contractor agrees to maintain such records for possible audit for a minimum of three years after final payment, unless a longer period of records retention is stipulated under this Contract or by law. Contractor agrees to allow interviews of any employees or others who might reasonably have information related to such records. Further, Contractor agrees to include a similar right to the OCHFT to audit records and interview staff of any subcontractor related to performance of this Contract.

Should the Contractor cease to exist as a legal entity, the Contractor's records pertaining to this agreement shall be forwarded to the surviving entity in a merger or acquisition or, in the event of liquidation, to the OCHFT Chair.

BB. Contingency of Funds: Contractor acknowledges that funding or portions of funding for this Contract may be contingent upon state budget approval; receipt of funds from, and/or obligation of funds by, the state of California to OCHFT; and inclusion of sufficient funding for the services hereunder in the budget approved by OCHFT's Board Members for each fiscal year covered by this Contract. If such approval, funding or appropriations are not forthcoming, or are otherwise limited, OCHFT may immediately terminate or modify this Contract without penalty.

CC. Expenditure Limit: The Contractor shall notify the OCHFT Chair in writing when the expenditures against the Contract reach 75 percent of the dollar limit on the Contract. The OCHFT will not be responsible for any expenditure overruns and will not pay for work exceeding the dollar limit on the Contract unless a change order to cover those costs has been issued.

II. Additional Terms and Conditions

- 1. Scope of Contract:** This Contract specifies the contractual terms and conditions by which the OCHFT will procure consultant services from Contractor as further detailed in the Scope of Work, identified and incorporated herein by this reference as "Attachment A".
- 2. Term of Contract:** This Contract shall commence on January 1, 2026, and continue until April 30, 2026, unless otherwise terminated by either party.
- 3. Adjustments – Scope of Work:** No adjustments made to the scope of work will be authorized without prior written approval of the OCHFT Board

4. **Breach of Contract:** The failure of the Contractor to comply with any of the provisions, covenants or conditions of this Contract shall be a material breach of this Contract. In such event the OCHFT may, and in addition to any other remedies available at law, in equity, or otherwise specified in this Contract:
 - i. Terminate the Contract immediately, pursuant to Section K herein;
 - ii. Afford the Contractor written notice of the breach and ten (10) calendar days or such shorter time that may be specified in this Contract within which to cure the breach;
 - iii. Discontinue payment to the Contractor for and during the period in which the Contractor is in breach; and
 - iv. Offset against any monies billed by the Contractor but yet unpaid by the OCHFT those monies disallowed pursuant to the above.
5. **Civil Rights:** Contractor attests that services provided shall be in accordance with the provisions of Title VI and Title VII of the Civil Rights Act of 1964, as amended; Section 504 of the Rehabilitation Act of 1973, as amended; the Age Discrimination Act of 1975 as amended; Title II of the Americans with Disabilities Act of 1990, and other applicable State and federal laws and regulations prohibiting discrimination on the basis of race, color, national origin, ethnic group identification, age, religion, marital status, sex or disability.
6. **Conflict of Interest – Contractor’s Personnel:** The Contractor shall exercise reasonable care and diligence to prevent any actions or conditions that could result in a conflict with the best interests of the OCHFT. This obligation shall apply to the Contractor; the Contractor’s employees and agents, associated with accomplishing work and services hereunder. The Contractor’s efforts shall include, but not be limited to establishing precautions to prevent its employees or agents from making, receiving, providing or offering gifts, entertainment, payments, loans or other considerations which could be deemed to appear to influence individuals to act contrary to the best interests of the OCHFT.
7. **Conflict of Interest – OCHFT Personnel:** The OCHFT Board policy prohibits its employees from engaging in activities involving a conflict of interest. The Contractor shall not, during the period of this Contract, employ any OCHFT employee for any purpose.
8. **Contractor’s Expense:** The Contractor will be responsible for all costs related to individual/mobile telephone communications, and electronic communication, for the performance of work and services under this Contract. The OCHFT will not provide free parking for any service.
9. **Contractor’s Project Manager and Key Personnel:** Contractor shall appoint a Project Manager to direct the Contractor’s efforts in fulfilling Contractor’s obligations under this Contract. This Project Manager shall be subject to approval by the OCHFT and shall not be changed without the written consent of the OCHFT Chair, which consent shall not be unreasonably withheld.

The Contractor’s Project Manager shall be assigned to this project for the duration of the Contract and shall diligently pursue all work and services to meet the project time lines. The OCHFT Chair shall have the right to require the removal and replacement of the Contractor’s Project Manager from providing services to the OCHFT under this Contract. The OCHFT Chair shall notify the Contractor in writing of such action. The Contractor shall accomplish the removal within three (3) business days after written notice by the OCHFT Chair. The OCHFT Chair shall review and approve the appointment of the replacement for the Contractor’s Project Manager. The OCHFT is not required to provide any additional information, reason or rationale in the event it The OCHFT is not required to provide any additional information, reason or rationale in the event it requires the removal of Contractor’s Project Manager from providing further services under the Contract.
10. **Contractor’s Records:** The Contractor shall keep true and accurate accounts, records, books and data which shall correctly reflect the business transacted by the Contractor in accordance with generally accepted accounting principles. These records shall be stored in Orange County for a period of three (3) years after final payment is received from the OCHFT.

11. **Conditions Affecting Work:** The Contractor shall be responsible for taking all steps reasonably necessary to ascertain the nature and location of the work to be performed under this Contract and to know the general conditions which can affect the work or the cost thereof. Any failure by the Contractor to do so will not relieve Contractor from responsibility for successfully performing the work without additional cost to the OCHFT. The OCHFT assumes no responsibility for any understanding or representations concerning the nature, location(s) or general conditions made by any of its officers or agents prior to the execution of this Contract, unless such understanding or representations by the OCHFT are expressly stated in the Contract.
12. **Data – Title To:** All materials, documents, data or information obtained from the OCHFT data files or any OCHFT medium furnished to the Contractor in the performance of this Contract will at all times remain the property of the OCHFT. Such data or information may not be used or copied for direct or indirect use by the Contractor after completion or termination of this Contract without the express written consent of the OCHFT. All materials, documents, data or information, including copies, must be returned to the OCHFT at the end of this Contract.
13. **Debarment:** Contractor certifies that neither Contractor nor its principles are presently debarred, proposed for debarment, declared ineligible or voluntarily excluded from participation in the transaction by any Federal department or agency. Where Contractor as the recipient of federal funds, is unable to certify to any of the statements in the certification, Contractor must include an explanation with the bid/proposal. Debarment pending debarment, declared ineligibility or voluntary exclusion from participation by any Federal department or agency may result in the bid/proposal being deemed non-responsible.
14. **Errors and Omissions:** All reports, files and other documents prepared and submitted by Contractor shall be complete and shall be carefully checked by the professional(s) identified by Contractor as project manager and key personnel attached hereto, prior to submission to the OCHFT. Contractor agrees that OCHFT review is discretionary, and Contractor shall not assume that the OCHFT will discover errors and/or omissions. If the OCHFT discovers any errors or omissions prior to approving Contractor's reports, files and other written documents, the reports, files or documents will be returned to Contractor for correction. Should the OCHFT or others discover errors or omissions in the reports, files or other written documents submitted by the Contractor after OCHFT approval thereof, OCHFT approval of Contractor's reports, files or documents shall not be used as a defense by Contractor in any action between the OCHFT and Contractor, and the reports, files or documents will be returned to Contractor for correction.
15. **Gratuities:** The Contractor warrants that no gratuities, in the form of entertainment, gifts or otherwise, were offered or given by the Contractor or any agent or representative of the Contractor to any officer or employee of the OCHFT with a view toward securing the Contract or securing favorable treatment with respect to any determinations concerning the performance of the Contract. For breach or violation of this warranty, the OCHFT shall have the right to terminate the Contract, either in whole or in part, and any loss or damage sustained by the OCHFT in procuring on the open market any goods or services which the Contractor agreed to supply shall be borne and paid for by the Contractor. The rights and remedies of the OCHFT provided in the clause shall not be exclusive and are in addition to any other rights and remedies provided by law or under the Contract.
16. **News/Information Release:** The Contractor agrees that it will not issue any news releases in connection with either the award of this Contract or any subsequent amendment of or effort under this Contract without first obtaining review and written approval of said news releases from the OCHFT through the Chair.
17. **Notices:** Any and all notices, requests demands. and other communications contemplated, called for, permitted, or required to be given hereunder shall be in writing with a copy provided to the OCHFT Chair, except through the course of the parties' project managers' routine exchange of information and cooperation during the terms of the work and services. Any written communications shall be deemed to have been duly given upon actual in-person delivery, if delivery is by direct hand, or upon delivery on

the actual day of receipt or no greater than four (4) calendar days after being mailed by US certified or registered mail, return receipt requested, postage prepaid, whichever occurs first. The date of mailing shall count as the first day. All communications shall be addressed to the appropriate party at the address stated herein or such other address as the parties hereto may designate by written notice from time to time in the manner aforesaid.

For Contractor: Mobius Planning, LLC
Attn: Grant Henninger
1030 S. Country Glen Way
Anaheim, CA 92806

Email: grant@mobius-planning.com
Phone: 714-323-5731

For OCHFT Orange County Housing Finance Trust
Attn: OCHFT Chair
1 League #62335
Irvine, CA 92620

18. **Ownership of Documents:** The OCHFT has permanent ownership of all directly connected and derivative materials produced under this contract by the contractor. All documents, reports and other incidental or derivative work or materials furnished hereunder shall become and remains the sole property of the OCHFT and may be used by the OCHFT as it may require without additional cost to the OCHFT. None of the documents, reports and other incidental or derivative work or furnished materials shall be used by the Contractor without the express written consent of the OCHFT.
19. **Precedence:** The Contract documents consist of this Contract and its exhibits and attachments. In the event of a conflict between or among the Contract documents, the order of precedence shall be the provisions of the main body of this Contract, i.e., those provisions set forth in the recitals and articles of this Contract, and then the attachments and exhibits.
20. **Reports/Meetings:** The Contractor shall develop reports and any other relevant documents necessary to complete the services and requirements as set forth in this Contract. The OCHFT Chair and the Contractor's Project Manager will meet on reasonable notice to discuss the Contractor's performance and progress under this Contract. If requested, the Contractor's Project Manager and other project personnel shall attend all meetings. The Contractor shall provide such information that is requested by the OCHFT for the purpose of monitoring progress under this Contract.
21. **Subcontracting:** Other than what is already provided in this Contract, no performance of this Contract or any portion thereof may be subcontracted by the Contractor without the express written consent of the OCHFT. Any attempt by the Contractor to subcontract any performance of this Contract without the express written consent of the OCHFT shall be invalid and shall constitute a breach of this Contract.

In the event that the Contractor is authorized by the OCHFT to subcontract, this Contract shall take precedence over the terms of the Contract between Contractor and subcontractor and shall incorporate by reference the terms of this Contract. The OCHFT shall look to the Contractor for performance and indemnification and not deal directly with any subcontractor. All work performed by a subcontractor must meet the approval of the OCHFT.
22. **Usage:** No guarantee is given by the OCHFT to the Contractor regarding usage of this Contract. Usage figures, if provided, are approximations. The Contractor agrees to supply services requested and/or commodities requested, as needed by the OCHFT, at rates/prices listed in the Contract, regardless of quantity requested.

23. **Taxpayer ID Number:** The Contractor shall include its taxpayer ID number on all invoices submitted to the OCHFT for payment to ensure compliance with IRS requirements and to expedite payment processing.
24. **Termination – Orderly:** After receipt of a termination notice from the OCHFT, the Contractor may submit to the OCHFT a termination claim, if applicable. Such claim shall be submitted promptly, but in no event later than 60 days from the effective date of the termination, unless one or more extensions in writing are granted by the OCHFT upon written request of the Contractor. Upon termination OCHFT agrees to pay the Contractor for all services performed prior to termination which meet the requirements of the Contract, provided, however, that such compensation combined with previously paid compensation shall not exceed the total compensation set forth in the Contract. Upon termination or other expiration of this Contract, each party shall promptly return to the other party all papers, materials, and other properties of the other held by each for purposes of performance of the Contract.
25. **Waivers – Contract:** The failure of the OCHFT in any one or more instances to insist upon strict performance of any of the terms of this Contract or to exercise any option contained herein shall not be construed as a waiver or relinquishment to any extent of the right to assert or rely upon any such terms or option on any future occasion.

Signature Page

IN WITNESS WHEREOF, the Parties hereto certify that they have read and understand all the terms and conditions contained herein and have hereby caused this Contract to be executed.

McHing Planning LLC

Signed by:
By: Grant Herring
E226AA04F2B1437...

Name: Grant Herring

Title: Founding Principle

Dated: 12/23/2025

*For Subrecipients that are corporations, signature requirements are as follows: 1) One signature by the Chairman of the Board, the President or any Vice President; and 2) One signature by the secretary, any Assistant secretary, the Chief Financial Officer or an Assistant Treasurer.

For Subrecipients that are not corporations, the person who has authority to bind the Subrecipient to a contract, must sign on one of the lines above.

ORANGE COUNTY HOUSING FINANCE TRUST

Signed by:
By: Louis McClure
E2F1DF3E19E34D6... Dated: 12/23/2025

Louis McClure, Trust Manager
Orange County Housing Finance Trust

APPROVED AS TO FORM

TRUST COUNSEL

DocuSigned by:
By: Ray Diaz
340EAD6CC0E14AF... Dated: 12/23/2025
TRUST COUNSEL

Attachment A

OCHFT Bridge Contract Scope of Work: Interim Affordable Housing NOFA Administration Support

Purpose:

This bridge contract provides interim support to ensure continuity of essential day-to-day functions related to the administration of the Orange County Housing Finance Trust (Trust) Notice of Funding Availability (NOFA) process and projects. The consultant will maintain operations while a competitive procurement is conducted for a long-term consultant to manage the full scope of work.

Key Responsibilities:

1. NOFA Coordination and Communication

- a. Maintain communication with applicants and stakeholders regarding current NOFA cycles.
- b. Provide technical assistance and respond to inquiries from developers and partners.
- c. Support the Trust Manager in coordinating internal and external input on NOFA-related matters.

2. Application Intake and Threshold Review

- a. Receive and log applications.
- b. Conduct initial threshold review for completeness and eligibility.
- c. Coordinate with underwriting consultant and County staff as needed.

3. Meeting Support and Reporting

- a. Provide written updates to the Trust Manager on project pipeline and NOFA status.
- b. Attend and support Trust Board meetings as needed.
- c. Respond to inquiries from the Trust Manager or Chair within two (2) business days.

4. Loan Commitment and Closing Support

- a. Draft commitment letters and coordinate review with legal counsel and Trust Manager.
- b. Attend closing and conversion calls for pending closings and represent the Trust in concert with legal counsel.
- c. Support due diligence tracking and coordination with developers, lenders and escrow/title agents for pending closings.
- d. Negotiate standard set of loan documents and coordinate review with legal counsel and stakeholders and final execution.
- e. Request drawdown of funds from local, state and/or federal funding sources as needed for disbursement of Trust funding commitments.

5. Compliance and Documentation

- a. Maintain organized records of NOFA activities, project status, applicant information and funding documentation.
- b. Ensure availability of materials for audit and transparency purposes.
- c. Manage Local Housing Trust Fund grant including compliance and reporting.

6. Deliverables:

- a. Monthly status updates to the Trust Manager.
- b. Updated project pipeline, milestone tracking and NOFA fund balance.
- c. Documents and reports in editable digital formats (Word, Excel, PDF).

7. Transition Support to Permanent Consultant

The consultant shall support a smooth transition to the permanent consultant selected through the upcoming RFP process. This includes, but is not limited to:

- a. Compiling and organizing all relevant project documentation, timelines, and communications.
- b. Preparing a transition memo summarizing the status of active NOFA cycles and fund balances, pending applications, and key deadlines.
- c. Participating in knowledge transfer meetings with the incoming consultant and Trust staff.
- d. Responding to reasonable requests for clarification or background information during the transition period.
- e. The consultant is expected to maintain clear and organized records to facilitate continuity and minimize disruption during the handoff.

ATTACHMENT B COMPENSATION AND PRICING

In consideration of the performance of these services, Consultant will be compensated in an amount not to exceed \$9,999.00 for the duration of the contract or \$2,499.75 monthly. This fee is based upon the scope of services above.

CONTRACT TERM: This bridge contract shall not exceed 4 months in duration from date of execution and may be terminated by Trust or Consultant with 30-days prior written notice.

PAYMENT TERMS: Invoices are to be submitted in arrears, monthly, to the Trust Manager as directed in this Contract. Consultant shall reference Contract number on invoice. Payment will be net-30 days after receipt of an invoice in a format acceptable to the Trust and verified and approved by the Trust Manager and subject to routine processing requirements. The responsibility for providing an acceptable invoice rests with Consultant.

Billing shall cover services and/or goods not previously invoiced. Consultant shall reimburse Trust for any monies paid to Consultant for goods or services not provided or when goods or services do not meet Contract requirements.

Payments made by Trust shall not preclude the right of Trust from thereafter disputing any items or services involved or billed under this Contract and shall not be construed as acceptance of any part of the goods or services.

PAYMENT – INVOICING INSTRUCTIONS: Consultant will provide an invoice on the Consultant's letterhead for services rendered. Each invoice will have a number and will include the following information:

- A. Consultant's name and address
- B. Consultant's remittance address, if different from A. above
- C. Consultant's Taxpayer ID Number
- D. Delivery/service address
- E. Contract Number MA-012-26010731
- F. Date of invoice
- G. Product/service description, quantity, and prices
- H. Sales tax, if applicable
- I. Freight/delivery charges, if applicable
- J. Total

Invoice and support documentation are to be forwarded to:
County Executive Office / Public Finance
Attn: Louis McClure
400 W. Civic Center Dr.
Santa Ana, CA 92701
Email: Louis.McClure@ceo.oc.gov

Agenda Item 5

AGENDA STAFF REPORT

MEETING DATE: March 18, 2026

CONTACT PERSON(S): Louis McClure (714) 834-5999, Ray Diaz (714) 834-3300

SUBJECT: Approve Contract with K&M Enterprises: Research and Fund Development, Inc.

PRIOR BOARD ACTION: N/A

APPLICABLE STRATEGIC PLAN GOAL(S): Goal 2

RECOMMENDED ACTION(S):

1. Approve the selection of K&M Enterprises: Research and Fund Development, Inc. and authorize Trust Manager to execute the contract.

BACKGROUND INFORMATION:

On March 13, 2025, the County Procurement Office conducted a request for proposals (RFP) process on behalf of the Orange County Housing Finance Trust (OCHFT) for the selection of a firm to provide fundraising and grant writing consulting services. An RFP review panel was convened, and the proposals were ranked based on the firm's background and experience, proposed staffing, work plan, and experience with fundraising and grant applications. The review panel scored K&M Enterprises: Research and Fund Development, Inc. (K&M) as the top-ranking firm based on their experience with public grant application process and private sector fundraising.

K&M will provide fundraising and grant application services as described in the scope of work in Attachment A to the proposed contract. The initial term is three years from the date of execution, renewable for an additional two years upon written agreement of both parties.

The proposed compensation is a fixed monthly retainer of \$5,000 which assumes forty hours of consultant time per month at a blended hourly rate of \$125 per hour. Any hours not used in a given month will carry forward and accumulate in an hour bank to be used in any subsequent month at no additional charge. Hours worked in excess of forty hours per month will be deducted from the hour bank. If the hours worked in a given month exceed the hours available in the hour bank, the excess hours will be recorded as a negative hour bank balance. K&M will provide a current hour bank statement with each monthly invoice. K&M may, with Trust Manager approval, invoice the OCHFT for any portion of outstanding hours on a monthly invoice at the rate of \$125 per hour. This rate structure provides for regular monthly billing but allows necessary flexibility in workload due to the irregular nature of the fundraising and grant writing process.

In addition, the contract provides for fixed bonuses for meeting certain private donor funding milestones. The details of the compensation, including bonus amounts and how they are awarded are described in Attachment B to the proposed contract. Total compensation shall not exceed \$300,000 per contract year including hourly compensation and bonuses.

ATTACHMENTS: Attachment A – Proposed Contract with K&M

**CONTRACT BETWEEN
ORANGE COUNTY HOUSING FINANCE TRUST
AND
K & M ENTERPRISES: RESEARCH AND FUND DEVELOPMENT, INC.
FOR
FUNDRAISING AND GRANT WRITING CONSULTING SERVICES**

This Contract for Fundraising and Grant Writing Consulting Services (“Contract”) is made and entered into as of the date fully executed by and between the Orange County Housing Finance Trust, a California public agency formed pursuant to California Government Cost section 6500 et. Seq., (“OCHFT”) and K & M Enterprises: Research and Fund Development, Inc., a State of California Corporation (Contractor), with a place of business at 9006 Navajo Trail, Morongo Valley, CA 92256; (“Contractor”), with OCHFT and Contractor sometimes individually referred to as (Party), or collectively referred to as (Parties).

ATTACHMENTS

This Contract is comprised of this document and the following Attachments, which are attached hereto and incorporated by reference into this Contract:

Attachment A – Scope of Work
Attachment B – Payment and Compensation
Attachment C – Key Personnel/Staffing Plan
Attachment D – Incentive Payments for Fundraising from Private Donors

RECITALS

WHEREAS, the Orange County Board of Supervisors (“Board”) co-sponsored Assembly Bill 448, which authorizes the County and cities in Orange County to create the OCHFT to receive and provide funds for housing for those experiencing homelessness and those who are extremely low, very low and low income within Orange County; and

WHEREAS, the Board approved the OCHFT Joint Powers Agreement (“JPA”) on March 12, 2019; and

WHEREAS, the OCHFT Board of Directors requires management and administrative support services to continue OCHFT’s goals to provide housing throughout Orange County; and

WHEREAS, OCHFT desires to enter into a Contract with Contractor for Fundraising and Grant Writing Consulting Services, as more fully described in Attachment A – Scope of Work; and

WHEREAS, Contractor is willing to provide the services as specified in Attachment A, in accordance with the Terms and Conditions of this Contract; and

WHEREAS, OCHFT agrees to pay Contractor the fees as further set forth in Compensation / Payment, attached hereto as Attachment B and incorporated herein;

NOW, THEREFORE, the Parties mutually agree as follows:

ARTICLES

I. GENERAL TERMS AND CONDITIONS:

- A. Governing Law and Venue:** This Contract has been negotiated and executed in the state of California and shall be governed by and construed under the laws of the state of California. In the event of any legal action to enforce or interpret this Contract, the sole and exclusive venue shall be a court of competent jurisdiction located in Orange County, California, and the parties hereto agree to and do hereby submit to the jurisdiction of such court, notwithstanding Code of Civil Procedure Section 394. Furthermore, the parties specifically agree to waive any and all rights to request that an action be transferred for trial to another county.
- B. Entire Contract:** This Contract, when accepted by the Contractor either in writing or by the shipment of any article or other commencement of performance hereunder, contains the entire Contract between the parties with respect to the matters herein, and there are no restrictions, promises, warranties or undertakings other than those set forth herein or referred to herein. No exceptions, alternatives, substitutes or revisions are valid or binding on OCHFT unless authorized by OCHFT in writing. Electronic acceptance of any additional terms, conditions or supplemental Contracts by any OCHFT employee or agent, including but not limited to installers of software, shall not be valid or binding on OCHFT unless accepted in writing by OCHFT Chair or his/her designee, hereinafter "Purchasing Agent."
- C. Amendments:** No alteration or variation of the terms of this Contract shall be valid unless made in writing and signed by the parties; no oral understanding or agreement not incorporated herein shall be binding on either of the parties; and no exceptions, alternatives, substitutes or revisions are valid or binding on OCHFT unless authorized by OCHFT in writing.
- D. Taxes:** Unless otherwise provided herein or by law, price quoted does not include California state sales or use tax.
- E. Delivery:** Time of delivery of services is of the essence in this Contract. OCHFT reserves the right to refuse any services and to cancel all or any part of the services that do not conform to the prescribed statement of work. Delivery shall not be deemed to be complete until all services have actually been received and accepted in writing by OCHFT.
- F. Acceptance/Payment:** Unless otherwise agreed to in writing by the OCHFT, 1) acceptance shall not be deemed complete unless in writing and until all the services have actually been received to the satisfaction of OCHFT, and 2) payment shall be made in arrears after satisfactory acceptance and in accordance with Attachment B.
- G. Warranty:** Contractor expressly warrants that the goods/services covered by this Contract are fit for the particular purpose for which they are intended. Acceptance of this order shall constitute an agreement upon Contractor's part to indemnify, defend and hold OCHFT and its indemnittees as identified in paragraph "Z" below, and as more fully described in paragraph "Z", harmless from liability, loss, damage and expense, including reasonable counsel fees, incurred or sustained by OCHFT by reason of the failure of the services to conform to such warranties, faulty work performance, negligent or unlawful acts, and non-compliance with any applicable state or federal codes, ordinances, orders, or statutes, including the Occupational Safety and Health Act (OSHA) and the California Industrial Safety Act. Such remedies shall be in addition to any other remedies provided by law.
- H. Patent/Copyright Materials/Proprietary Infringement:** Intentionally Omitted
- I. Assignment:** The terms, covenants, and conditions contained herein shall apply to and bind the heirs, successors, executors, administrators and assigns of the parties. Furthermore, neither the performance of this Contract nor any portion thereof may be assigned or sub-contracted by Contractor without the express written consent of OCHFT. Any attempt by Contractor to assign or sub-contract the performance or any portion thereof of this Contract without the express written consent of OCHFT shall be invalid and shall constitute a breach of this Contract.

- J. Non-Discrimination:** In the performance of this Contract, Contractor agrees that it will comply with the requirements of Section 1735 of the California Labor Code and not engage nor permit any subcontractors to engage in discrimination in employment of persons because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, marital status, or sex of such persons. Contractor acknowledges that a violation of this provision shall subject Contractor to all the penalties pursuant to Section 1741 of the California Labor Code.
- K. Termination:** In addition to any other remedies or rights it may have by law, OCHFT has the right to terminate this Contract without penalty for cause or after thirty (30) days' written notice without cause, unless otherwise specified. Cause shall be defined as any breach of contract, any misrepresentation or fraud on the part of the Contractor. Exercise by OCHFT of its right to terminate the Contract shall relieve OCHFT of all further obligations.
- L. Consent to Breach Not Waiver:** No term or provision of this Contract shall be deemed waived and no breach excused, unless such waiver or consent shall be in writing and signed by the party claimed to have waived or consented. Any consent by any party to, or waiver of, a breach by the other, whether express or implied, shall not constitute consent to, waiver of, or excuse for any other different or subsequent breach.
- M. Independent Contractor:** Contractor shall be considered an independent contractor and neither Contractor, its employees nor anyone working under Contractor shall be considered an agent or an employee of OCHFT. Neither Contractor, its employees nor anyone working under Contractor shall qualify for workers' compensation or other fringe benefits of any kind through OCHFT.
- N. Performance:** Contractor shall warrant all work under this Contract, taking necessary steps and precautions to perform the work to OCHFT's satisfaction. Contractor shall be responsible for the professional quality, technical assurance, timely completion and coordination of all documentation and other services furnished by the Contractor under this Contract. Contractor shall perform all work diligently, carefully, and in a good and workmanlike manner; shall furnish all necessary labor, supervision, machinery, equipment, materials, and supplies, shall at its sole expense obtain and maintain all permits and licenses required by public authorities, including those of OCHFT required in its governmental capacity, in connection with performance of the work. If permitted to subcontract, Contractor shall be fully responsible for all work performed by subcontractors.
- O. Insurance Provision:** Prior to the provision of services under this Contract, the Contractor agrees to purchase all required insurance at Contractor's expense, including all endorsements required herein, necessary to satisfy the OCHFT that the insurance provisions of this Contract have been complied with. Contractor agrees to keep such insurance coverage, Certificates of Insurance, and endorsements on deposit with the OCHFT during the entire term of this Contract. In addition, all subcontractors performing work on behalf of Contractor pursuant to this Contract shall obtain insurance subject to the same terms and conditions as set forth herein for Contractor.

Contractor shall ensure that all subcontractors performing work on behalf of Contractor pursuant to this Contract shall be covered under Contractor's insurance as an Additional Insured or maintain insurance subject to the same terms and conditions as set forth herein for Contractor. Contractor shall not allow subcontractors to work if subcontractors have less than the level of coverage required by OCHFT from Contractor under this Contract. It is the obligation of Contractor to provide notice of the insurance requirements to every subcontractor and to receive proof of insurance prior to allowing any subcontractor to begin work. Such proof of insurance must be maintained by Contractor through the entirety of this Contract for inspection by OCHFT representative(s) at any reasonable time.

All self-insured retentions (SIRs) shall be clearly stated on the Certificate of Insurance. Any self-insured retention (SIR) in an amount in excess of Fifty Thousand Dollars (\$50,000) shall specifically be approved by the County's Risk Manager, or designee. If Contractor is self-insured, Contractor will indemnify the County for any and all claims resulting or arising from Contractor's services in accordance with the indemnity provision stated in this contract.

If the Contractor fails to maintain insurance acceptable to the OCHFT for the full term of this Contract, the OCHFT may terminate this Contract.

Qualified Insurer

The policy or policies of insurance must be issued by an insurer with a minimum rating of A- (Secure A.M. Best's Rating) and VIII (Financial Size Category as determined by the most current edition of the Best's Key Rating Guide/Property-Casualty/United States or ambest.com).

If the insurance carrier does not have an A.M. Best Rating of A-/VIII, the CEO/Office of Risk Management retains the right to approve or reject a carrier after a review of the company's performance and financial ratings.

The policy or policies of insurance maintained by the Contractor shall provide the minimum limits and coverage as set forth below:

Coverage	Minimum Limits
Commercial General Liability	\$1,000,000 per occurrence \$2,000,000 aggregate
Automobile Liability including coverage for owned or scheduled non-owned and hired vehicles	\$1,000,000 combined single limit each accident
Workers' Compensation	Statutory
Employers Liability Insurance	\$1,000,000 per accident or disease
Professional Liability Insurance	\$1,000,000 per claims-made or occurrence \$1,000,000 aggregate

Required Coverage Forms

The Commercial General Liability coverage shall be written on Insurance Services Office (ISO) form CG 00 01, or a substitute form providing liability coverage at least as broad.

The Business Auto Liability coverage shall be written on ISO form CA 00 01, CA 00 05, CA 00 12, CA 00 20, or a substitute form providing coverage at least as broad.

Required Endorsements

The Commercial General Liability policy shall contain the following endorsements, which shall accompany the Certificate of Insurance:

1. An Additional Insured endorsement using ISO form CG 20 26 04 13 or a form at least as broad naming the County of Orange, ***Orange County Housing Finance Trust its elected and appointed officials, officers, agents and employees*** as Additional Insureds, or provide blanket coverage, which will state ***AS REQUIRED BY WRITTEN CONTRACT.***
2. A primary non-contributing endorsement using ISO form CG 20 01 04 13, or a form at least as broad evidencing that the Contractor's insurance is primary and any insurance or self-insurance maintained by the OCHFT shall be excess and non-contributing.

The Workers' Compensation policy shall contain a waiver of subrogation endorsement waiving all rights of subrogation against the County of Orange, ***Orange County Housing Finance Trust, its elected and appointed officials, officers, employees and agents***, or provide blanket coverage, which will state ***AS REQUIRED BY WRITTEN CONTRACT.***

All insurance policies required by this Contract shall waive all rights of subrogation against the OCHFT, its elected and appointed officials, officers, employees and agents when acting within the scope of their appointment or employment.

Contractor shall notify County in writing within thirty (30) days of any policy cancellation and ten (10) days for non-payment of premium and provide a copy of the cancellation notice to County. Failure to provide written notice of cancellation may constitute a material breach of the Contract, upon which the County may suspend or terminate this Contract.

If Contractor's Professional Liability is a "Claims-Made" policy, Contractor shall agree to the following:

- 1) The retroactive date must be shown and must be before the date of the Contract or the beginning of the Contract services.
- 2) Insurance must be maintained, and evidence of insurance must be provided for at least three (3) years after expiration or earlier termination of Contract services.
- 3) If coverage is canceled or non-renewed, and not replaced with another claims-made policy form with a retroactive date prior to the effective date of the contract services, Contractor must purchase an extended reporting period for a minimum of three (3) years after expiration of earlier termination of the Contract.

The Commercial General Liability policy shall contain a severability of interests clause also known as a "separation of insureds" clause (standard in the ISO CG 0001 policy).

Insurance certificates should be forwarded to the agency/department address listed on this Contract.

If the Contractor fails to provide the insurance certificates and endorsements within seven (7) days of notification by CEO/Purchasing or the agency/department purchasing division, award may be made to the next qualified Offeror.

County expressly retains the right to require Contractor to increase or decrease insurance of any of the above insurance types throughout the term of this Contract. Any increase or decrease in insurance will be as deemed by County Risk Manager as appropriate to adequately protect County.

County shall notify Contractor in writing of changes in the insurance requirements. If Contractor does not deposit copies of acceptable Certificates of Insurance and endorsements with County incorporating such changes within thirty (30) days of receipt of such notice, this Contract may be in breach without further notice to Contractor, and County shall be entitled to all legal remedies.

The procuring of such required policy or policies of insurance shall not be construed to limit Contractor's liability hereunder nor to fulfill the indemnification provisions and requirements of this Contract, nor act in any way to reduce the policy coverage and limits available from the insurer.

P. Changes: Contractor shall make no changes in the work or perform any additional work without the OCHFT's specific written approval.

Q. Change of Ownership/Name, Litigation Status, Conflicts with OCHFT Interests: Contractor agrees that if there is a change or transfer in ownership of Contractor's business prior to completion of this Contract, and the OCHFT agrees to an assignment of the Contract, the new owners shall be required under the terms of sale or other instruments of transfer to assume Contractor's duties and obligations contained in this Contract and complete them to the satisfaction of the OCHFT. OCHFT reserves the right to

immediately terminate the Contract in the event the OCHFT determines that the assignee is not qualified or is otherwise unacceptable to the OCHFT for the provision of services under the Contract.

In addition, Contractor has the duty to notify the OCHFT in writing of any change in the Contractor's status with respect to name changes that do not require an assignment of the Contract. The Contractor is also obligated to notify the OCHFT in writing if the Contractor becomes a party to any litigation against the OCHFT, or a party to litigation that may reasonably affect the Contractor's performance under the Contract, as well as any potential conflicts of interest between Contractor and OCHFT that may arise prior to or during the period of Contract performance. While Contractor will be required to provide this information without prompting from the OCHFT any time there is a change in Contractor's name, conflict of interest or litigation status, Contractor must also provide an update to the OCHFT of its status in these areas whenever requested by the OCHFT.

The Contractor shall exercise reasonable care and diligence to prevent any actions or conditions that could result in a conflict with OCHFT interests. In addition to the Contractor, this obligation shall apply to the Contractor's employees, agents, and subcontractors associated with the provision of goods and services provided under this Contract. The Contractor's efforts shall include, but not be limited to establishing rules and procedures preventing its employees, agents, and subcontractors from providing or offering gifts, entertainment, payments, loans or other considerations which could be deemed to influence or appear to influence OCHFT staff or elected officers in the performance of their duties.

- R. Force Majeure:** Contractor shall not be assessed with liquidated damages or unsatisfactory performance penalties during any delay beyond the time named for the performance of this Contract caused by any act of God, war, civil disorder, employment strike or other cause beyond its reasonable control, provided Contractor gives written notice of the cause of the delay to OCHFT within thirty-six (36) hours of the start of the delay and Contractor avails himself of any available remedies.
- S. Confidentiality:** Contractor agrees to maintain the confidentiality of all OCHFT and OCHFT-related records and information pursuant to all statutory laws relating to privacy and confidentiality that currently exist or exist at any time during the term of this Contract. All such records and information shall be considered confidential and kept confidential by Contractor and Contractor's staff, agents and employees.
- T. Compliance with Laws:** Contractor represents and warrants that services to be provided under this Contract shall fully comply, at Contractor's expense, with all standards, laws, statutes, restrictions, ordinances, requirements, and regulations (collectively "laws"), including, but not limited to those issued by OCHFT in its governmental capacity and all other laws applicable to the services at the time services are provided to and accepted by OCHFT. Contractor acknowledges that OCHFT is relying on Contractor to ensure such compliance, and pursuant to the requirements of paragraph "Z" below, Contractor agrees that it shall defend, indemnify and hold OCHFT and OCHFT Indemnitees harmless from all liability, damages, costs, and expenses arising from or related to a violation of such laws.

Contractor shall remain in compliance and in good standing, maintaining current and active business entity and/or nonprofit registration status, with all applicable federal, state and local registration requirements at the time of execution of the contract through the duration of the term of the Contract, and shall provide annual confirmation of current and active status to County through the term of the Contract.

In addition, Contractor agrees to provide to the OCHFT the following documents/verifications if applicable to Contractor:

- 1) IRS – TIN verification

- 2) IRS – Tax – exempt status
- 3) IRS – 990 Filing status
- 4) California Department of Justice Charity Registry - Status
- 5) California Secretary of State – Incorporation Status
- 6) California Secretary of State – Annual Statement of Information Status

Contractor agrees to update the OCHFT in writing within thirty (30) days of any changes or alterations to any of the above listed items.

- U. Freight (F.O.B. Destination):** Intentionally Omitted
- V. Severability:** If any term, covenant, condition, or provision of this Contract is held by a court of competent jurisdiction to be invalid, void or unenforceable, the remainder of the provisions hereof shall remain in full force and effect and shall in no way be affected, impaired or invalidated thereby.
- W. Attorney Fees:** In any action or proceeding to enforce or interpret any provision of this Contract, each party shall bear their own attorney's fees, costs and expenses.
- X. Interpretation:** This Contract has been negotiated at arm's length and between persons sophisticated and knowledgeable in the matters dealt with in this Contract. In addition, each party has been represented by experienced and knowledgeable independent legal counsel of their own choosing or has knowingly declined to seek such counsel despite being encouraged and given the opportunity to do so. Each party further acknowledges that they have not been influenced to any extent whatsoever in executing this Contract by any other party hereto or by any person representing them, or both. Accordingly, any rule or law (including California Civil Code Section 1654) or legal decision that would require interpretation of any ambiguities in this Contract against the party that has drafted it is not applicable and is waived. The provisions of this Contract shall be interpreted in a reasonable manner to affect the purpose of the parties and this Contract.
- Y. Employee Eligibility Verification:** The Contractor warrants that it fully complies with all Federal and State statutes and regulations regarding the employment of aliens and others and that all its employees performing work under this Contract meet the citizenship or alien status requirement set forth in Federal statutes and regulations. The Contractor shall obtain, from all employees, consultants and subcontractors performing work hereunder, all verification and other documentation of employment eligibility status required by Federal or State statutes and regulations including, but not limited to, the Immigration Reform and Control Act of 1986, 8 U.S.C. §1324 et seq., as they currently exist and as they may be hereafter amended. The Contractor shall retain all such documentation for all covered employee, consultants and subcontractors for the period prescribed by the law. The Contractor shall indemnify, defend with counsel approved in writing by OCHFT, and hold harmless, the OCHFT, its agents, officers, and employees from employer sanctions and any other liability which may be assessed against the Contractor or the OCHFT or both in connection with any alleged violation of any Federal or State statutes or regulations pertaining to the eligibility for employment of any persons performing work under this Contract.
- Z. Indemnification Provisions:** Contractor agrees to indemnify, defend with counsel approved in writing by OCHFT, and hold OCHFT, its elected and appointed officials, officers, employees, agents and those special districts and agencies which OCHFT's Board Members acts as the governing Board ("OCHFT Indemnitees") harmless from any claims, demands or liability of any kind or nature, including but not limited to personal injury or property damage, arising from or related to the services, products or other performance provided by Contractor pursuant to this Contract. If judgment is entered against Contractor and OCHFT by a court of competent jurisdiction because of the concurrent active negligence of OCHFT or OCHFT Indemnitees, Contractor and OCHFT agree that liability will be apportioned as determined by the court. Neither party shall request a jury apportionment.

- AA. Audits/Inspections:** Contractor agrees to permit the OCHFT's Auditor-Controller or the Auditor-Controller's authorized representative (including auditors from a private auditing firm hired by the OCHFT) access during normal working hours to all books, accounts, records, reports, files, financial records, supporting documentation, including payroll and accounts payable/receivable records, and other papers or property of Contractor for the purpose of auditing or inspecting any aspect of performance under this Contract. The inspection and/or audit will be confined to those matters connected with the performance of the Contract including, but not limited to, the costs of administering the Contract. The OCHFT will provide reasonable notice of such an audit or inspection.
- The OCHFT reserves the right to audit and verify the Contractor's records before final payment is made.
- Contractor agrees to maintain such records for possible audit for a minimum of three years after final payment, unless a longer period of records retention is stipulated under this Contract or by law. Contractor agrees to allow interviews of any employees or others who might reasonably have information related to such records. Further, Contractor agrees to include a similar right to the OCHFT to audit records and interview staff of any subcontractor related to performance of this Contract.
- Should the Contractor cease to exist as a legal entity, the Contractor's records pertaining to this agreement shall be forwarded to the surviving entity in a merger or acquisition or, in the event of liquidation, to the OCHFT Chair.
- BB. Contingency of Funds:** Contractor acknowledges that funding or portions of funding for this Contract may be contingent upon state budget approval; receipt of funds from, and/or obligation of funds by, the state of California to OCHFT; and inclusion of sufficient funding for the services hereunder in the budget approved by OCHFT's Board Members for each fiscal year covered by this Contract. If such approval, funding or appropriations are not forthcoming, or are otherwise limited, OCHFT may immediately terminate or modify this Contract without penalty.
- CC. Expenditure Limit:** The Contractor shall notify the OCHFT Chair in writing when the expenditures against the Contract reach 75 percent of the dollar limit on the Contract. The OCHFT will not be responsible for any expenditure overruns and will not pay for work exceeding the dollar limit on the Contract unless a change order to cover those costs has been issued.

Additional Terms and Conditions:

1. **Scope of Contract:** This Contract specifies contractual terms and conditions by which the OCHFT will procure Consultant Services from Contractor as further detailed in the Scope of Work, identified and incorporated herein by this reference as "Attachment A".
2. **Term of Contract:** This Contract shall commence upon Board approval and execution of all necessary signatures continue for three (3) calendar years from that date unless otherwise terminated by either party.
3. **Renewal:** This Contract may be renewed by mutual written agreement of both Parties for two (2) additional years. The County does not have to provide a reason for declining to renew this Contract. Renewal periods may be subject to approval by the County of Orange Board of Supervisors.
4. **Adjustments – Scope of Work:** No adjustments made to the scope of work will be authorized without prior approval of the OCHFT Board.
5. **Bills and Liens:** Contractor shall pay promptly all indebtedness for labor, materials and equipment used in performance of the work. Contractor shall not permit any lien or charge to attach to the work or the premises, but if any does so attach, Contractor shall promptly procure its

release and, in accordance with the requirements of paragraph “Z” above, indemnify, defend, and hold County harmless and be responsible for payment of all costs, damages, penalties and expenses related to or arising from or related thereto.

6. **Civil Rights:** Contractor attests that services provided shall be in accordance with the provisions of Title VI and Title VII of the Civil Rights Act of 1964, as amended; Section 504 of the Rehabilitation Act of 1973, as amended; the Age Discrimination Act of 1975 as amended; Title II of the Americans with Disabilities Act of 1990, and other applicable State and federal laws and regulations prohibiting discrimination on the basis of race, color, national origin, ethnic group identification, age, religion, marital status, sex or disability.
7. **Conflict of Interest – Contractor’s Personnel:** Contractor shall exercise reasonable care and diligence to prevent any actions or conditions that could result in a conflict with the best interests of the OCHFT. This obligation shall apply to Contractor, Contractor’s officers, directors, employees, agents, and subcontractors associated with accomplishing work and services hereunder. Contractor’s efforts shall include, but not be limited to establishing precautions to prevent its employees, agents, and subcontractors from providing or offering gifts, entertainment, payments, loans or other considerations which could be deemed to influence or appear to influence OCHFT staff or elected officers from acting in the best interests of the OCHFT.

Contractor shall notify OCHFT, in writing, of any potential or actual conflicts of interest between Contractor and OCHFT that may arise prior to, or during the period of, Contract performance, including, but not limited to, whether any known County public officer’s child is an officer or director of, or has an ownership interest of ten (10) percent or more in, Contractor. While Contractor will be required to provide this information without prompting from OCHFT any time there is a change regarding conflict of interest, Contractor must also provide an update to County upon request by OCHFT.
8. **Conflict of Interest – OCHFT Personnel:** County of Orange Board of Supervisors policy prohibits its employees from engaging in activities involving a conflict of interest. Contractor shall not, during the period of this Contract, employ any County employee for any purpose.
9. **Contractor’s Expense:** The Contractor will be responsible for all costs related to individual/mobile telephone communications, and electronic communication, for the performance of work and services under this Contract. The OCHFT will not provide free parking for any service.
10. **Contractor’s Project Manager and Key Personnel:** Contractor shall appoint a Project Manager to direct the Contractor’s efforts in fulfilling Contractor’s obligations under this Contract. This Project Manager shall be subject to approval by the OCHFT and shall not be changed without the written consent of the OCHFT Chair, which consent shall not be unreasonably withheld.

The Contractor’s Project Manager shall be assigned to this project for the duration of the Contract and shall diligently pursue all work and services to meet the project time lines. The OCHFT Chair shall have the right to require the removal and replacement of the Contractor’s Project Manager from providing services to the OCHFT under this Contract. The OCHFT Chair shall notify the Contractor in writing of such action. The Contractor shall accomplish the removal within three (3) business days after written notice by the OCHFT Chair. The OCHFT Chair shall review and approve the appointment of the replacement for the Contractor’s Project Manager. The OCHFT is not required to provide any additional information, reason or rationale in the event it The OCHFT is not required to provide any additional information, reason or rationale in the event it requires the removal of Contractor’s Project Manager from providing further services under the Contract.
11. **Contractor’s Records:** The Contractor shall keep true and accurate accounts, records, books and data which shall correctly reflect the business transacted by the Contractor in accordance with generally accepted accounting principles. These records shall be stored in Orange County for a period of three (3) years after final payment is received from the OCHFT.
12. **Conditions Affecting Work:** The Contractor shall be responsible for taking all steps reasonably necessary to ascertain the nature and location of the work to be performed under this Contract and

to know the general conditions which can affect the work or the cost thereof. Any failure by the Contractor to do so will not relieve Contractor from responsibility for successfully performing the work without additional cost to the OCHFT. The OCHFT assumes no responsibility for any understanding or representations concerning the nature, location(s) or general conditions made by any of its officers or agents prior to the execution of this Contract, unless such understanding or representations by the OCHFT are expressly stated in the Contract.

13. **Data – Title To:** All materials, documents, data or information obtained from the OCHFT data files or any OCHFT medium furnished to the Contractor in the performance of this Contract will at all times remain the property of the OCHFT. Such data or information may not be used or copied for direct or indirect use by the Contractor after completion or termination of this Contract without the express written consent of the OCHFT. All materials, documents, data or information, including copies, must be returned to the OCHFT at the end of this Contract.
14. **Debarment:** Contractor certifies that neither Contractor nor its principles are presently debarred, proposed for debarment, declared ineligible or voluntarily excluded from participation in the transaction by any Federal department or agency. Where Contractor as the recipient of federal funds, in unable to certify to any of the statements in the certification, Contractor must include an explanation with the bid/proposal. Debarment pending debarment, declared ineligibility or voluntary exclusion from participation by any Federal department of agency may result in the bid/proposal being deemed non-responsible.
15. **Errors and Omissions:** All reports, files and other documents prepared and submitted by Contractor shall be complete and shall be carefully checked by the professional(s) identified by Contractor as project manager and key personnel attached hereto, prior to submission to the OCHFT. Contractor agrees that OCHFT review is discretionary, and Contractor shall not assume that the OCHFT will discover errors and/or omissions. If the OCHFT discovers any errors or omissions prior to approving Contractor's reports, files and other written documents, the reports, files or documents will be returned to Contractor for correction. Should the OCHFT or others discover errors or omissions in the reports, files or other written documents submitted by the Contractor after OCHFT approval thereof, OCHFT approval of Contractor's reports, files or documents shall not be used as a defense by Contractor in any action between the OCHFT and Contractor, and the reports, files or documents will be returned to Contractor for correction.
16. **Gratuities:** The Contractor warrants that no gratuities, in the form of entertainment, gifts or otherwise, were offered or given by the Contractor or any agent or representative of the Contractor to any officer or employee of the OCHFT with a view toward securing the Contract or securing favorable treatment with respect to any determinations concerning the performance of the Contract. For breach or violation of this warranty, the OCHFT shall have the right to terminate the Contract, either in whole or in part, and any loss or damage sustained by the OCHFT in procuring on the open market any goods or services which the Contractor agreed to supply shall be borne and paid for by the Contractor. The rights and remedies of the OCHFT provided in the clause shall not be exclusive and are in addition to any other rights and remedies provided by law or under the Contract.
17. **News/Information Release:** The Contractor agrees that it will not issue any news releases in connection with either the award of this Contract or any subsequent amendment of or effort under this Contract without first obtaining review and written approval of said news releases from the OCHFT through the Chair.
18. **Notices:** Any and all notices, requests demands. and other communications contemplated, called for, permitted, or required to be given hereunder shall be in writing with a copy provided to the OCHFT Chair, except through the course of the parties' project managers' routine exchange of information and cooperation during the terms of the work and services. Any written communications shall be deemed to have been duly given upon actual in-person delivery, if delivery is by direct hand, or upon delivery on the actual day of receipt or no greater than four (4) calendar days after being mailed by US certified or registered mail, return receipt requested,

postage prepaid, whichever occurs first. The date of mailing shall count as the first day. All communications shall be addressed to the appropriate party at the address stated herein or such other address as the parties hereto may designate by written notice from time to time in the manner aforesaid.

For Contractor: K & M Enterprises: Research and Fund Development, Inc.
9006 Navajo Trail
Morongo Valley, CA 92256

For OCHFT Orange County Housing Finance Trust
400 West Civic Center Drive, Fifth Floor
Santa Ana, CA 92701

19. **Ownership of Documents:** The OCHFT has permanent ownership of all directly connected and derivative materials produced under this contract by the contractor. All documents, reports and other incidental or derivative work or materials furnished hereunder shall become and remains the sole property of the OCHFT and may be used by the OCHFT as it may require without additional cost to the OCHFT. None of the documents, reports and other incidental or derivative work or furnished materials shall be used by the Contractor without the express written consent of the OCHFT.
20. **Precedence:** The Contract documents consist of this Contract and its exhibits and attachments. In the event of a conflict between or among the Contract documents, the order of precedence shall be the provisions of the main body of this Contract, i.e., those provisions set forth in the recitals and articles of this Contract, and then the attachments and exhibits.
21. **Reports/Meetings:** The Contractor shall develop reports and any other relevant documents necessary to complete the services and requirements as set forth in this Contract. The OCHFT Chair and the Contractor's Project Manager will meet on reasonable notice to discuss the Contractor's performance and progress under this Contract. If requested, the Contractor's Project Manager and other project personnel shall attend all meetings. The Contractor shall provide such information that is requested by the OCHFT for the purpose of monitoring progress under this Contract.
22. **Subcontracting:** No performance of this Contract or any portion thereof may be subcontracted or otherwise delegated by Contractor, in whole or in part, without first obtaining the prior express written consent of OCHFT. Any attempt by Contractor to subcontract or delegate any performance of this Contract without the prior express written consent of OCHFT shall be invalid and shall constitute a material breach of this Contract, and any attempted assignment or delegation in derogation of this paragraph shall be void.

In the event that Contractor is authorized by OCHFT to subcontract, this Contract shall take precedence over the terms of the agreement between Contractor and subcontractor, and any agreement between Contractor and a subcontractor shall incorporate by reference the terms of this Contract. Contractor shall remain responsible for the performance of this Contract and indemnification of OCHFT notwithstanding the OCHFT's consent to Contractor's request for approval of a subcontractor. Under no circumstances shall OCHFT be required to directly monitor the performance of any subcontractor. All work performed by a subcontractor must be monitored by Contractor and must meet the approval of the OCHFT pursuant to the terms of this Contract.
23. **Usage:** No guarantee is given by the OCHFT to the Contractor regarding usage of this Contract. Usage figures, if provided, are approximations. The Contractor agrees to supply services requested and/or commodities requested, as needed by the OCHFT, at rates/prices listed in the Contract, regardless of quantity requested.

24. **Taxpayer ID Number:** The Contractor shall include its taxpayer ID number on all invoices submitted to the OCHFT for payment to ensure compliance with IRS requirements and to expedite payment processing.
25. **Termination – Orderly:** After receipt of a termination notice from the OCHFT, the Contractor may submit to the OCHFT a termination claim, if applicable. Such claim shall be submitted promptly, but in no event later than 60 days from the effective date of the termination, unless one or more extensions in writing are granted by the OCHFT upon written request of the Contractor. Upon termination OCHFT agrees to pay the Contractor for all services performed prior to termination which meet the requirements of the Contract, provided, however, that such compensation combined with previously paid compensation shall not exceed the total compensation set forth in the Contract.
- Upon termination or other expiration of this Contract, each party shall promptly return to the other party all papers, materials, and other properties of the other held by each for purposes of performance of the Contract.
26. **Waivers – Contract:** The failure of the OCHFT in any one or more instances to insist upon strict performance of any of the terms of this Contract or to exercise any option contained herein shall not be construed as a waiver or relinquishment to any extent of the right to assert or rely upon any such terms or option on any future occasion.

Signature Page

IN WITNESS WHEREOF, the Parties hereto certify that they have read and understand all the terms and conditions contained herein and have hereby caused this Contract to be executed.

K & M ENTERPRISES: RESEARCH AND FUND DEVELOPMENT, INC.

By: Kristina H. Brook

Name: Kristina H Brook

Title: PRESIDENT/CEO

Dated: 2/28/2026

*For Subrecipients that are corporations, signature requirements are as follows: 1) One signature by the Chairman of the Board, the President or any Vice President; and 2) One signature by the secretary, any Assistant secretary, the Chief Financial Officer or an Assistant Treasurer.

For Subrecipients that are not corporations, the person who has authority to bind the Subrecipient to a contract, must sign on one of the lines above.

ORANGE COUNTY HOUSING FINANCE TRUST

By: _____ Dated: _____
Louis McClure, Trust Manager
Orange County Housing Finance Trust

APPROVED AS TO FORM

TRUST COUNSEL
DocuSigned by:
By: Ray Diaz Dated: 3/13/2026
340EAD6CC0E14AF...
TRUST COUNSEL

ATTACHMENT A
SCOPE OF WORK

- I. GENERAL INFORMATION:** The OCHFT shall assign, on an as-needed basis, Contractor to perform Fundraising and Grant Writing Consulting services described in this Contract. Due to varying degree and complexities to fulfill the service requirements of this Contract, the actual scope of services including tasks, deliverables, project timeline/schedule and fees may require mutual approval from Parties in accordance with the Service Request Procedures identified in this Contract.

II. CONTRACTOR SERVICES:

Contractor services may include, but are not limited to, the following:

1. In coordination with the Trust Manager, explore, research, and apply for Private Sector donations to fund more affordable and supportive housing.
2. Prepare reports for the OCHFT Board on the current status of Private Sector fundraising. Report are to be provided at the OCHFT Board Meetings or as requested by the Chair or any member of the OCHFT Board.
3. Produce collateral to increase Private Sector fundraising opportunities.
4. Coordinate with Trust Manager on Public Grant Applications available to OCHFT.
5. Coordinate with Trust Manager on any leads regarding Private Sector fundraising that may be available to OCHFT.
6. Explore, research, apply and manage OCHFT tax-exempt donations to fund more affordable and supportive housing.
7. Other duties and assignments as requested by the OCHFT Board and/or through the OCHFT Chair to increase Private Sector fundraising and public sector grant awards.

III. SERVICE REQUEST PROCEDURES:

The OCHFT Chair or OCHFT Board shall have the right to request all services and work provided for under this Contract. Contractor shall timely perform all such requested services and work as requested. All requests for services shall require review and/or approval from the OCHFT Chair or designee.

- A. Contractor Responsibilities:
 1. Contractor shall discuss all required services to be performed with the OCHFT Chair or key designated personnel prior to the start of work.
 2. Contractor shall perform all necessary work in a professional manner and notify the OCHFT Chair or designee upon project completion.
- B. Change Management:
 1. No changes to an approved request for services (tasks, deliverables, timeline and not to exceed hours, etc.) shall be permitted without a change request in writing submitted by the Contractor and approved in writing by the OCHFT Board.
- C. Communication Management
 1. All communication for any work performed in this Contract will be directed to the OCHFT Board through the OCHFT Chair.

VIII. OCHFT RESPONSIBILITIES

1. The OCHFT Board, through its OCHFT Chair or designee, shall assign, review, and approve all Contractor services in this Contract.
2. OCHFT will provide meeting facilities, as needed.

IX. SUBCONTRACTORS

In accordance with Article I, Assignment, assignment of additional key personnel shall be subject to OCHFT approval. OCHFT reserves the right to deny assignment and to have any of Contractor personnel removed from providing services to OCHFT under this Contract. OCHFT is not required to provide any reason for the denial of assignment or for the request for removal of any Contractor personnel.

ATTACHMENT B
PRICING AND COMPENSATION

- I. COMPENSATION:** This is a firm fixed fee Contract between the OCHFT and Contractor to provide Fundraising and Grant Writing Consulting Services as set forth in Attachment A, “Scope of Work”. The annual Contract amount shall not exceed \$300,000.00 per year for a total not-to-exceed Contract amount of \$900,000.00.

Excluded from this firm fixed fee is time spent locating responsive records and responding record requests under the California Public Records Act. Such requests shall be billed at a rate of \$125 per hour. Contractor shall seek to subcontractor pursuant to section 21 of this Contract to reduce the costs associated with California Public Records Act requests.

The Contractor agrees to accept the specified compensation as set forth in this Contract as full payment for performing all services and furnishing all staffing and materials required, for any reasonably unforeseen difficulties which may arise or be encountered in the execution of the services until acceptance, for risks connected with the services, and for performance by the Contractor of all its duties and obligations hereunder. The Contractor shall only be compensated as set forth herein for work performed in accordance with the Scope of Work. **The OCHFT shall have no obligation to pay any sum in excess of the Fixed Prices and Total Contract Amount specified herein unless authorized by amendment in accordance with Articles C and P of this Contract.**

- II. CONTRACTOR FEES:** OCHFT shall pay Contractor at the fixed monthly fee specified herein provided, however, that the total of such payments, including reimbursable expenses, shall not exceed the total Contract amount. This is in addition to the eligible incentive payments.

Monthly Fee \$5,000

HOURLY-BANKING RETAINER MECHANISM

A. Monthly Hour Bank. Each monthly retainer payment of Five Thousand Dollars (\$5,000) shall purchase and credit forty (40) hours of consulting services to Consultant’s running account (the “Hour Bank”), maintained by Consultant and reported to Trust as set forth in Section D below. The blended hourly rate implied by the retainer is One Hundred Twenty-Five Dollars (\$125.00) per hour.

B. Carry-Forward of Unused Hours. Any monthly hours not utilized in a given calendar month shall carry forward and accumulate in the Hour Bank without expiration for the remaining term of the Agreement. Positive Hour Bank balances are available for use in any subsequent month at no additional charge.

C. Hour Overages. If hours worked by Consultant in a given month exceed the hours then available in the Hour Bank, the excess hours shall be recorded as a negative Hour Bank balance (“Hour Deficit”). Each monthly retainer payment shall credit forty (40) new hours to the Hour Bank in the calendar month in which the payment is received, without offset or reduction for any existing Hour Deficit. Consultant may, with authorization from Trust Project Manager, invoice Trust for all or any portion of any outstanding Hour Deficit as a separate line item on any monthly invoice or status report, at the blended hourly rate of One Hundred Twenty-Five Dollars (\$125.00) per hour. Trust shall remit payment of any such Hour Deficit invoice within thirty (30) calendar days of receipt. Consultant’s election not to invoice an Hour Deficit in any given month shall not constitute a waiver of Consultant’s right to invoice such amounts in any subsequent month or pursuant to “E. Settlement Upon Termination or Expiration” below. Consultant shall provide prior written notice to Trust before undertaking work that would create or materially increase an Hour Deficit.

D. Monthly Hour Bank Report. Consultant shall include a current Hour Bank statement with each monthly invoice or status report, showing: (a) the opening Hour Bank balance for the month; (b) the monthly hours credited for the month; (c) hours worked during the month; and (d) the closing Hour Bank balance (positive or negative).

E. Settlement Upon Termination or Expiration. Upon termination or expiration of the Agreement for any reason: (a) any positive Hour Bank balance, representing retainer amounts paid by Trust for hours not yet worked by Consultant, shall be refunded to Trust within thirty (30) calendar days of the effective termination or expiration date, calculated at the blended hourly rate of One Hundred Twenty-Five Dollars (\$125.00) per hour; and (b) any Hour Deficit, representing hours worked by Consultant but not yet compensated through the retainer or prior invoicing, shall become immediately due and payable by Trust, settled at the blended hourly rate of One Hundred Twenty-Five Dollars (\$125.00) per hour, within thirty (30) calendar days of the effective termination or expiration date.

III. INCENTIVE PAYMENT STRUCTURE:

INCENTIVE PAYMENTS WILL BE BASED ON THE FUNDS RAISED FROM PRIVATE DONORS. FUNDS OBTAINED THROUGH A GRANT OR OTHER INITIATIVE ARE NOT ELIGIBLE FOR INCENTIVE PAYMENT.

3.1 Nature of Payments. The parties acknowledge and agree that Consultant is registered with the California Attorney General as Fundraising Counsel pursuant to California Government Code Section 12599.1, and that Consultant does not solicit, receive, control, or have custody of charitable funds on behalf of the Trust. The incentive payments set forth in this Section III are fixed, pre-agreed milestone bonuses payable for professional services rendered and strategic targets achieved. They are not contingency fees, commissions, or compensation computed as a percentage of funds raised. Nothing in this Section shall be construed to reclassify Consultant as a commercial fundraiser for charitable purposes as defined in California Government Code Section 12599.

3.2 Private Donor Milestone Bonuses. Upon verification that private donor funds have been actually received by the Trust (not pledged, committed, or conditionally promised), Consultant shall be entitled to receive the following fixed milestone bonus payments:

Milestone	Cumulative Private Donor Funds Received by Trust	Fixed Bonus Payable to Consultant
1	\$50,000	\$4,000
2	\$100,000	\$5,000
3	\$250,000	\$8,000
4	\$500,000	\$10,000
5	\$750,000	\$11,000
6	\$1,000,000	\$12,500
7	\$1,050,000	\$3,000
8	\$1,100,000	\$4,000
9	\$1,250,000	\$7,000
10	\$1,500,000	\$11,000
11	\$1,750,000	\$12,000
12	\$2,000,000	\$15,500

Consultant acknowledges that the above bonus amounts were individually negotiated to reflect the progressive difficulty of sustaining private donor fundraising at each threshold level and are not calculated as or derived from any percentage of the funds raised.

3.3 Verification Requirement. No milestone bonus shall be due or payable until the Trust provides written confirmation to Consultant that the applicable threshold of private donor funds has been actually received

by the Trust in immediately available funds. Pledges, grants pending disbursement, and conditional commitments shall not count toward any milestone threshold.

3.4 Milestone Bonuses Are Not Cumulative Unless Stated. Each milestone bonus is triggered once, upon first reaching the applicable cumulative threshold. If cumulative receipts jump from below one threshold to above a higher threshold within a single reporting period, all milestones passed shall be earned and payable in that period.

3.5 Payment Timing. Milestone bonus payments verified and confirmed under Section 3.3 shall be invoiced by Consultant and paid by Trust within thirty (30) calendar days of receipt of Consultant's invoice.

3.6 Scope of Private Donor Funds. For purposes of this Section, "private donor funds" means gifts, grants, and donations from individual donors, family foundations, private foundations, and corporate donors, directly attributable to Consultant's fundraising strategy and activities under Attachment A. Government grants and public-sector funding are excluded from this definition unless otherwise agreed in writing.

3.7 Continuation Milestone Structure Beyond \$2,000,000. In the event that cumulative Private Donor Funds Raised exceed Two Million Dollars (\$2,000,000), the milestone bonus structure set forth in Milestones 7 through 12 of Section 3.2 above shall repeat and apply to the increment from \$2,000,000 to \$3,000,000, with each applicable cumulative threshold adjusted upward by One Million Dollars (\$1,000,000). In the event that cumulative Private Donor Funds Raised exceed Three Million Dollars (\$3,000,000), Contractor shall propose, in writing, a modification to the incentive payment structure to account for the higher fundraising tiers, subject to the mutual written agreement of the Parties and a formal amendment to this Contract pursuant to Article C herein. Pending execution of such amendment, incentive payments for Private Donor Funds Raised in excess of Three Million Dollars (\$3,000,000) shall continue to follow the same milestone pattern as Milestones 7 through 12 of Section 3.2.

3.8 Contract Renewal. In the event the Agreement is renewed for an additional term, the cumulative threshold calculations under this Section shall reset to zero as of the first day of the renewed term, and Consultant shall be eligible to earn each milestone bonus again during the renewed term upon meeting the applicable thresholds, unless the parties expressly agree otherwise in a written renewal agreement.

- IV. FIRM DISCOUNT AND PRICING STRUCTURE:** Contractor guarantees that prices quoted are equal to or less than prices quoted to any other local, State or Federal government entity for services of equal or lesser scope. The Contractor agrees that no price increases shall be passed along to the County during the term of this Contract not otherwise specified and provided for within this Contract.
- V.** If the Contractor is unable to supply the services under the terms of the Contract, then the Contractor shall provide proof of such disruption and a copy of the invoice for the services from the Contractor's supplier(s). An additional profit margin as a result of supplying services during an emergency or a declared disaster shall not be permitted.
- VI. CONTRACTOR'S EXPENSE:** Contractor shall furnish all materials, supplies, computer equipment, and labor to provide the requested services in this Contract. The Contractor will be responsible for all costs related to individual/mobile telephone communications, travel within Orange County, parking and any and all "out of pocket" expenses incurred by the Contractor while on OCHFT sites during the performance of work and services under this Contract, unless otherwise specified. The Contractor shall be responsible for payment of all parking costs and expenses incurred at an OCHFT facility while performing work under this Contract, except to the extent the OCHFT facility has free parking available to the public and the Contractor makes appropriate use of this free parking. However, the OCHFT will not provide free parking to the Contractor.
- VII. PAYMENT TERMS:** Invoices are to be submitted monthly in arrears for the services rendered. The invoice(s) shall be submitted to the user agency/department to the bill-to address, unless otherwise directed in this Contract. Contractor shall reference Contract number on invoice.

Payment will be net 30 days after receipt of an invoice in a format acceptable to OCHFT and verified and approved by the agency/department and subject to routine processing requirements. The responsibility for providing an acceptable invoice rests with Contractor.

Billing shall cover services and/or goods not previously invoiced. Contractor shall reimburse the OCHFT for any monies paid to Contractor for goods or services not provided or when goods or services do not meet Contract requirements.

Payments made by the OCHFT shall not preclude the right of the OCHFT from thereafter disputing any items or services involved or billed under this Contract and shall not be construed as acceptance of any part of the goods or services.

VIII. PAYMENT – INVOICING INSTRUCTIONS:

Contractor will provide an invoice on the Contractor's letterhead for services rendered. Each invoice will have a number and will include the following information:

- A. Contractor's name and address
- B. Contractor's remittance address, if different from A. above
- C. Contractor's Taxpayer ID Number
- D. Name of Trust – OC Housing Finance Trust
- E. Contract Number
- F. Date services rendered
- G. Service description
- H. Date specific and total time and billable cost

Invoice and support documentation are to be sent to:

Orange County Housing Finance Trust
Attn: Trust Manager
400 West Civic Center Drive, Fifth Floor
Santa Ana, CA 92701

Invoices must be approved by OCHFT Board Chair. Incomplete or incorrect invoices are not acceptable.

- IX. ELECTRONIC FUNDS TRANSFER (EFT):** County of Orange offers Contractors the option of receiving payment directly to their bank account via an Electronic Fund Transfer (EFT) process in lieu of a check payment. Payment made via EFT will also receive an Electronic Remittance Advice with the payment details via e-mail. An e-mail address will need to be provided to the County of Orange via an EFT Authorization Form. To request an EFT form, please contact the DPA.
- X. TAX ID NUMBER:** The Contractor shall include its taxpayer ID number on all invoices submitted to the OCHFT for payment to ensure compliance with IRS requirements and to expedite payment processing.

ATTACHMENT C
KEY PERSONNEL/STAFFING PLAN

I. KEY PERSONNEL

Respondents must identify all key staff members proposed to be assigned to the Contract if awarded to Respondent. Respondent shall provide the following information on each proposed staff member to be assigned to the Proposed Contract. Use additional sheets as needed.

NAME	PROFESSIONAL CLASSIFICATION / DESIGNATION	LICENSES OR CREDENTIALS	YEARS OF EXPERIENCE	YEARS WITH COMPANY
Kristina Brook, MA	President/CEO; Project Manager	MA, Educational Psychology, CSUN (1986); BA, Psychology, CSUN (1983); Registered Fundraising Counsel, CA Attorney General's Office (#1132); CA Teaching Credential, U of Redlands (2015)	33+	33
Raul Ramirez	Grants Manager; Secondary Point of Contact	None	6	6
Hannah Brook	Chief Financial Officer	BS, Business Administration (Marketing), UC Riverside (2019)	6	6
Andy Gray	Grant Writer	BA, Communications, Temple University	25+	14
Lorie Roseff	Grant Writer	MA, Applied Communications, U of Denver; BA, Broadcast Journalism, CSUN	30+	10

The substitution or addition of other key individuals in any given category or classification shall be allowed only with prior written approval of OCHFT's Project Manager or designee.

II. SUBCONTRACTORS

Listed below are subcontractor(s) anticipated by Contractor to perform services as specified in Attachment A. Substitution or addition of Contractor's subcontractors in any given project function shall be allowed only with prior written approval of OCHFT's Project Manager.

COMPANY NAME & ADDRESS	CONTACT NAME AND TELEPHONE NUMBER	PROJECT FUNCTION
BlackGreyGold Solutions (BGG) 550 Reserve Street, Suite 190, Southlake, TX 76092	Austin McCasin 1.817.879.6004	Contract management, invoicing, proposal development, document design, management oversight, and strategic guidance

ATTACHMENT D
INCENTIVE PAYMENTS FOR FUNDRAISING FROM PRIVATE DONORS

This Attachment D outlines the terms and conditions governing contingency and incentive payments for fundraising from private donors by the Contractor on behalf of the OCHFT. The OCHFT is engaged in efforts to raise funds to provide housing for those experiencing homelessness and those who are extremely low, very low, and low income within Orange County.

I. OBJECTIVE

The primary objective of this Attachment D is to incentivize the Contractor to raise funds from private donors, philanthropic organizations, and other non-governmental entities to support OCHFT's mission.

II. DEFINITIONS

- A. **Private Donor(s):** includes individual donors, philanthropic organizations, corporate sponsors, foundations, or non-governmental entities providing financial contributions.
- B. **Funds Raised:** The total amount of monetary contributions received and collected by the Entity from Private Donors as a result of the Contractor's efforts.
- C. **Eligible Contributions:** Donations from Private Donors that are unrestricted or designated specifically for the development of low-income housing.
- D. **Incentive Payment:** Additional compensation due to the Contractor based on the amount of funds raised as set forth in this Attachment.

III. COMPENSATION STRUCTURE

A. Base Fee

Contractor will receive the base contractor compensation fee as specified in Attachment B of this agreement. The base contractor compensation fee as specified in Attachment B is not contingent on fundraising results and will be paid accordingly to the payment scheduled outlined in Attachment B.

B. Incentive payment

In addition to the base fee, the Contractor will receive an incentive payment for Funds Raised. The incentive payment shall be calculated as follows:

Milestone	Cumulative Private Donor Funds Received by Trust	Fixed Bonus Payable to Consultant
1	\$50,000	\$4,000
2	\$100,000	\$5,000
3	\$250,000	\$8,000
4	\$500,000	\$10,000
5	\$750,000	\$11,000
6	\$1,000,000	\$12,500
7	\$1,050,000	\$3,000
8	\$1,100,000	\$4,000

9	\$1,250,000	\$7,000
10	\$1,500,000	\$11,000
11	\$1,750,000	\$12,000
12	\$2,000,000	\$15,500

IV. PAYMENT SCHEDULE

The contingency and incentive payments will be made to the Contractor based on the following schedule:

D.1 Governing Terms. All incentive payments under this Attachment D are governed by the terms of Attachment B, Section III (Incentive Compensation) of this Contract. In the event of any conflict between this Attachment D and Attachment B, Attachment B shall control.

D.2 Prohibition on Percentage-Based Compensation. No payment under this Agreement, including under this Attachment D, shall be calculated as or described as a percentage of funds raised, a contingency fee, a commission, or any form of compensation contingent upon the amount of charitable contributions received. All incentive payments are fixed, pre-agreed bonuses for professional services rendered. This provision reflects the parties' intent to comply with California Government Code Section 12599.1 and shall be strictly construed.

D.3 Payment Schedule. The milestone bonus amounts set forth in Attachment B, Sections 3.2 and 3.7 shall be the only performance-based payments due to Consultant under the Agreement. Such payments shall be made pursuant to the verification and timing procedures in Attachment B, Sections 3.3 through 3.5.

D.5 Payment Timeline and Documentation. Upon reaching any milestone threshold, Trust shall provide written confirmation to Consultant within fifteen (15) business days. Consultant shall submit an invoice within fifteen (15) business days of receiving such confirmation. Trust shall remit payment within thirty (30) calendar days of receiving the invoice.

V. DOCUMENTATION AND VERIFICATION

- A. Contractor shall inform the members of the Board of OCHFT within 15 (fifteen) days of receipt of any donation made to OCHFT.
- B. Contractor shall also provide detailed reports to the OCHFT on a quarterly basis at OCHFT Board meetings. These reports should include: the names of the Private Donors, the amounts pledged, and the date when amounts pledged are scheduled to be or are collected by OCHFT.

OCHFT reserves the right to verify all donations before making contingency or incentive payments to the Contractor. Disputed amounts or donations that do not qualify as Eligible Contributions will not be considered for contingency or incentive payment calculations.

VI. CONFLICTS OF INTEREST

OCHFT is committed to ensure full compliance with California Government Code Section 1090. Contractor must not engage in any conduct that raises a possible conflict of interest and will, at a minimum, comply with the provisions cited below.

- A. Disclosures of Conflicts of Interest

Contractor shall, every 6 months, fully disclose to the OCHFT any and all actual or potential conflicts of interest that may arise, directly or indirectly, in relation to the Contractor's performance under this Attachment D. A conflict of interest may arise when the Contractor, directly or indirectly:

1. Has a financial interest in a donor or potential donor.
2. Stands to benefit, financially or otherwise, from any entity that may receive preferential treatment because of the Contractor's fundraising efforts.
3. Represents or provides services to a Private Donor or other entity that has interests adverse to or in competition with the OCHFT.

Contractor must also fill out and provide to OCHFT Chair the "Orange County Housing Finance Trust Campaign Contribution Disclosure Form" every six months and every time a new Director is appointed to the OCHFT Board. An approved form of the "Orange County Housing Finance Disclosure of Contributions" is attached as Exhibit 2 and will be incorporated into the final Contract.

B. Prohibition on Self-Dealing

Contractor shall not, under any circumstances, solicit or accept donations from any Private Donor in which the Contractor has a direct or indirect financial or personal interest unless approved in writing by the OCHFT. Contractor acknowledges that even if approved in writing by the OCHFT, any Funds Raised via a Private Donor in which the Contractor has a direct or indirect financial or personal interest is not eligible for contingency payments under this Attachment D.

C. Prohibition on Preferential Treatment

Contractor shall not engage in any fundraising activities that grant preferential treatment to any Private Donor or affiliated entities in exchange for personal or financial gain or other favors.

D. No Influence Over Project Decisions

The Contractor shall have no role or influence in the OCHFT's decision-making regarding the use of funds raised, selection of contractors, or any other aspect of the low-income housing projects. The Contractor's role is limited strictly to fundraising activities, and any attempt to influence OCHFT's Board decision in exchange for fundraising contributions is strictly prohibited.

VII. REMEDIES FOR BREACH OF CONFLICT-OF-INTEREST PROVISIONS

In the event that the Contractor violates any of the conflict-of-interest provisions outlined in this Attachment D:

- A. Contractor shall forfeit any right to unpaid contingency or incentive payments related to the fundraising effort that was the subject of the conflict of interest.
- B. Contractor may be held liable for damages incurred by the Contractor, including the amount of any donations solicited in violation of these provisions.
- C. OCHFT may terminate this Agreement as allowed by the Agreement.

VIII. MISCELLANEOUS

- A. Exclusivity – Contractor acknowledges that no contingency or incentive payments will be made for funds raised by other parties unless the Contractor is directly involved in the fundraising efforts.
- B. Compliance – All fundraising efforts by the Contractor must comply with applicable laws, including but not limited to, federal and state charitable solicitation laws, as well as any specific guidelines set forth by the OCHFT.

EXHIBIT 1
CONFLICT OF INTEREST DISCLOSURE STATEMENT

Disclosure Policy

It is the policy of the Trust to ensure that firms and individuals providing services to the Trust are not subject to the organizational conflicts affecting their objectivity or their ability to provide impartial assistance or advice to the Trust. This form requires certain relationships to be disclosed to the Trust so that it may determine whether a potential organizational conflict exists and whether mitigation measures may be implemented so as to allow the firm or individual to perform services notwithstanding such potential conflict. Relationships with the following entities must be disclosed:

- 1) Any firm, individual, partnership, corporation, association or other legal entity currently retained for services by a developer of affordable housing or service provider for families and individuals at risk of or experiencing homelessness.
- 2) Any firm currently retained or which may be retained for services by the Orange County Housing Finance Trust or any member city of the Trust or other public entity within Orange County, California (see list of member agencies below).

Disclosure

- 1) _____ Consultant **IS NOT** NOT currently retained for services as defined in the Disclosure Policy above.
- 2) X Consultant **IS NOT** currently retained for services as defined in the Disclosure Policy above.

a) Consultant is retained for services by the following member agencies of the Trust

___ County of Orange	___ City of Laguna Niguel
___ City of Aliso Viejo	___ City of La Habra
___ City of Anaheim	___ City of Mission Viejo
___ City of Buena Park	___ City of Newport Beach
___ City of Costa Mesa	___ City of Orange
___ City of Dana Point	___ City of Placentia
___ City of Fountain Valley	___ City of San Juan Capistrano
___ City of Fullerton	___ City of Santa Ana
___ City of Garden Grove	___ City of Seal Beach
___ City of Huntington Beach	___ City of Stanton
___ City of Lake Forest	___ City of Tustin
___ City of Laguna Beach	___ City of Westminster
___ City of Laguna Hills	

b) Consultant is required to disclose to the Trust, in writing, any service relationship which may be entered into during the term of the Contract, which violates or appears to violate the intent of this Disclosure:

K & M ENTERPRISES: RESEARCH AND FUND DEVELOPMENT, INC.

Consultant

2/28/2026

Date

KRISTINA H. BROOK

Authorized Representative

PRESIDENT/CEO

Title

EXHIBIT 2
ORANGE COUNTY HOUSING FINANCE TRUST
DISCLOSURE OF CONTRIBUTIONS

The attached Disclosure of Contributions form must be completed by applicants for, or persons who are the subject of, any proceeding involving a license, permit, or other entitlement for use, including most contracts and franchises, pending before the Trust Board members.

IMPORTANT NOTICE

Government Code section 84308 (also known as the “Levine Act”) contains requirements that are summarized generally as follows:

- A. If you are an applicant for, or the subject of, any proceeding involving a license, permit, or other entitlement for use, you are prohibited from making a campaign contribution of more than \$250 to any Trust Board member who may participate in your proceeding. This prohibition begins on the date your application is filed or the proceeding is otherwise initiated, and the prohibition ends 12 months after a final decision is rendered by the Trust Board. In addition, no Trust Board member or other official who may participate in your proceeding alternate may solicit or accept a campaign contribution of more than \$250 from you during this period.
- B. These prohibitions also apply to your agents, and, if you are a closely held corporation, to your majority shareholder as well. These prohibitions also apply to your subcontractor(s), joint venturer(s), and partner(s) in this proceeding. Also included are parent companies and subsidiary companies directed and controlled by you, and political action committees directed and controlled by you.
- C. You must file the attached disclosure form and disclose whether you or your agent(s) have in the aggregate contributed more than \$250 to any Trust Board member or other officer who may participate in your proceeding during the 12-month period preceding the filing of the application or the initiation of the proceeding.
- D. If you or your agent have in the aggregate contributed more than \$250 to any individual Trust Board member or other officer who may participate in your proceeding during the 12 months preceding the decision on the application or proceeding, that Trust Board member or other officer must disqualify himself or herself from the decision. However, disqualification is not required if the Trust Board member or other official returns the campaign contribution within 30 days from the time the member or official knows, or should have known, about both the contribution and the fact that you are a party in the proceeding. The Disclosure of Contributions form should be completed and filed with your application or proposal, or with the first written document you file or submit after the proceeding commences.

1. A proceeding involving “a license, permit, or other entitlement for use” includes all business, professional, trade and land use licenses and permits, and all other entitlements for use, including all entitlements for land use, all contracts (other than competitively bid, labor or personal employment contracts), and all franchises.
2. Your “agent” is someone who represents you in connection with a proceeding involving a license, permit or other entitlement for use. If an individual acting as an agent is also acting in his or her capacity as an employee or member of a law, architectural, engineering, consulting firm, or similar business entity, both the business entity and the individual are “agents.”
3. To determine whether a campaign contribution of more than \$250 has been made by you, campaign contributions made by you within the preceding 12 months must be aggregated with those made by your agent within the preceding 12 months or the period of the agency relationship, whichever is shorter. Contributions made by your majority shareholder (if a closely held corporation), your subcontractor(s), your joint venturer(s), and your partner(s) in this proceeding must also be included as part of the aggregation. Campaign contributions made to different Trust Board members or other officers who may participate in your proceeding are not aggregated.
4. A list of the Trust Board members and other officials is attached.

This notice summarizes the major requirements of Government Code section 84308 of the Political Reform Act and California Code of Regulations, Title 2 sections 18438.1-18438.8.

DISCLOSURE OF CONTRIBUTIONS FORM

To be completed with the submission of any proposal.

Prime Firm's Name: _____

Party's Name: _____

Party's Address:

Street

City, State

Zip Code

Phone Number

Board Member(s) to whom you and/or your agent made campaign contributions and dates of contribution(s) in the last 12 months.

Name of Member: _____

Name of Contributor (if other than Party): _____

Date(s): _____

Amount(s): _____

Name of Member: _____

Name of Contributor (if other than Party): _____

Date(s): _____

Amount(s): _____

If not contributions are noted above, I hereby certify that no contributions have been made by the Party identified above to any of the Trust's Board of Directors.

Date

Signature of Party and/or Agent

Orange County Housing Finance Trust

Board of Directors Members

Chair Katrina Foley
County of Orange Supervisor – 5th District

Vice-Chair Melinda Liu
City of Irvine – Council Member

Board Member Shari Freidenrich
County of Orange Treasurer-Tax Collector

Board Member Vicente Sarmiento
County of Orange Supervisor – 2nd District

Board Member Norma Campos Kurtz
City of Anaheim – Council Member

Board Member Mike Frost
City of Dana Point – Council Member

Board Member Jesse Lopez
City of Santa Ana – Council Member

Board Member Gracey Van Der Mark
City of Huntington Beach – Council
Member

Board Member Andrew Hamilton
County of Orange Auditor-Controller